BRENDAN NGEHSI NEWANFORBI

Plaintiff In Pro Per

1455 Cat Tail Drive

Stockton, CA 95204

E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **KEELY DODD, in her individual capacity; GARY NOGUCHI, in his individual capacity; JOSEELYN ROJO, in her individual capacity; CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES AND DECLARATORY RELIEF** (1) Breach of Mandatory Duty (Gov. Code §§ 815.2, 815.6); (2) False Imprisonment; (3) Intentional Infliction of Emotional Distress; (4) Negligence; (5) Declaratory Relief (Code Civ. Proc. § 1060) *[Unlimited Civil — Exceeds $25,000]* *[Trial by Court — Jury Waived]*

INTRODUCTION

1. This is an action for damages and declaratory relief arising from the unlawful retention of Plaintiff BRENDAN NGEHSI NEWANFORBI on California parole after a legally void discharge review process. On November 14, 2025, a CDCR/DAPO Parole Agent assigned to the Stockton 2 GPS Parole Unit (Parole Agent Long Moua, Badge #7472, sued herein as a non-party actor, not as a defendant) authored a CDCR Form 1502-DR Discharge Review Report that, on its face, (a) applied mutually exclusive statutory parole-term frameworks, (b) relied on a non-existent "6.5 years of supervision" eligibility rule, (c) applied a non-existent "10-year parole term" exclusion attributed to an internal "Policy 19-03," (d) omitted every mandatory

Containment Team Meeting finding and CDCR Form 3043 documentation required by Title 15, California Code of Regulations section 3574, and (e) was used to deny discharge without any written good-cause determination. On November 19, 2025, Unit Supervisor Defendant GARY NOGUCHI reviewed and ratified the report; his written comments refer by name to a different parolee ("Eagan")—documentary proof that no individualized review occurred. On November 19, 2025, Parole Administrator Defendant KEELY DODD electronically signed the report as the final approving authority and thereby converted a facially defective field recommendation into binding administrative action denying discharge. The Agent of Record as of that date, Defendant JOSEELYN ROJO, never served the finalized report on Plaintiff; the fields on page 5 captioned "Parolee Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials" are blank.

2. Plaintiff had been eligible for discharge from parole since December 2, 2021—one year after his release to parole on December 2, 2020. (Pen. Code § 3001(a)(2).) On information and belief, no good-cause retention finding by the Board of Parole Hearings under Penal Code section 3001(a)(2) has been articulated, documented, served on Plaintiff, or otherwise provided to him on request. The statewide policies and practices that drove this result—including CDCR's continued insistence that sex-offender-management-program participation must continue through the entire parole term—were judicially condemned in In re Dwyer, San Mateo County Super. Ct. Case No. SC-080355A, HC-3020 (Mar. 20, 2023), survived demurrer in Alliance for Constitutional Sex Offense Laws v. Macomber, L.A. Co. Super. Ct. Case No. 23STCP02378 (Dec. 2023), and were formally repudiated by the April 17, 2025 amendments to 15 C.C.R. § 3574. Those amendments expressly provide that "supervised persons may complete a sex offender management program before discharge from parole, as contemplated by Pen. Code section 3008(d)." Defendants applied the pre-amendment framework to Plaintiff anyway.

3. Two distinct wrongful-conduct theories underlie this complaint. **First,** CDCR has, on information and belief, continuously failed since December 2, 2021 to perform the discharge determination mandated by Penal Code section 3001(a)(2). Each day of that continuing failure is

a separately actionable breach of mandatory duty under Government Code section 815.6. This continuing-breach theory supports Plaintiff's First Cause of Action against CDCR, and it supports the economic damages arising from Plaintiff's continued parole supervision before November 19, 2025, including the lost-wages losses for 2022 through 2024. **Second,** for purposes of the tort causes of action (False Imprisonment, Intentional Infliction of Emotional Distress, and Negligence) pleaded against the named individual Defendants, the discrete, final, and operative act that gives rise to those tort claims is Defendant Dodd's November 19, 2025 approval of the defective CDCR Form 1502-DR. Each day of continued parole supervision after November 19, 2025 constitutes a separately actionable day of unlawful custodial restraint for purposes of those tort counts. Every restraint imposed on Plaintiff after November 19, 2025—including 24-hour-per-day Global Positioning System ("GPS") monitoring, curfew, geographic restrictions, mandatory sex-offender treatment consuming six to eight hours per week, warrantless searches, restrictions on association, and the constant threat of reincarceration—is unauthorized because it rests on a review conducted through a noncompliant process, without a properly documented individualized good-cause determination, and without service.

4. Plaintiff seeks: (a) compensatory economic damages, including documented lost-wages losses of not less than $109,408 for 2022 through 2024 and continuing lost-wages losses of approximately $6,000 per month, attributable to CDCR's breach of its mandatory duties to discharge Plaintiff after December 2, 2021; (b) loss-of-liberty damages from November 19, 2025 forward, at a per-diem rate not less than $100 per day in light of the restrictions imposed on Plaintiff, according to proof; (c) out-of-pocket compliance costs; (d) non-economic damages for severe emotional distress, humiliation, and reputational harm; (e) punitive and exemplary damages against the named individual Defendants under Civil Code section 3294; and (f) a judicial declaration that the November 19, 2025 discharge-review determination is void as a matter of law and that Plaintiff is entitled to discharge unless and until a discharge review is lawfully conducted and a valid good-cause retention finding is entered by the Board of Parole Hearings.

SUMMARY OF CLAIMS

5. **Scope of this action.** Plaintiff does not in this action challenge the underlying 2018 judgment of conviction, his 2020 release to parole, or the existence of any original parole term. This action challenges only (a) the November 2025 discharge-review determination reflected in the CDCR Form 1502-DR attached as Exhibit A, (b) CDCR's continuing failure, since the December 2, 2021 statutory one-year threshold, to perform the discharge-review procedures mandated by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574, and (c) the continuing effects of the unlawful retention on Plaintiff's liberty, economic interests, and emotional well-being from November 19, 2025 forward. Within that scope, Plaintiff alleges five causes of action:

(i) Breach of Mandatory Duty (Gov. Code §§ 815.2, 815.6) — CDCR failed to perform the mandatory discharge-review procedures required by Penal Code sections 3000, 3001, and 3008, and by Title 15, California Code of Regulations section 3574, before retaining Plaintiff after the December 2, 2021 one-year threshold and before the November 19, 2025 denial of discharge. CDCR also bears vicarious liability under Government Code section 815.2(a) for the acts and omissions of its supervisory employees and of non-party Parole Agent Long Moua, the authoring agent;

(ii) False Imprisonment — the named individual Defendants caused and are causing Plaintiff's continued custodial restraint without lawful privilege, by ratifying and approving a review that applied fabricated eligibility rules, misidentified Plaintiff by another parolee's name, omitted mandatory findings and documentation, and failed to serve the decision on him;

(iii) Intentional Infliction of Emotional Distress — the named individual

Defendants' extreme and outrageous conduct in approving and ratifying a discharge denial that on its face identifies a different human being, and in continuing custodial restraint on that basis, caused severe emotional distress;

(iv) Negligence — each named individual Defendant breached ministerial duties imposed by statute and regulation; and

(v) Declaratory Relief — the November 19, 2025 discharge-review determination is void, and Plaintiff is entitled to a judicial declaration to that effect and to the concomitant determination that his continued parole supervision is unauthorized.

PARTIES

6. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person residing in Stockton, San Joaquin County, California. He is supervised under CDCR's Division of Adult Parole Operations ("DAPO"), Stockton 2 GPS Parole Unit, Region N. He holds a valid Class A Commercial Driver's License ("CDL") and, but for Defendants' conduct, possesses the skills and authorization to earn approximately $72,000 per year as a journeyman CDL truck driver. (Exhibit E.)

7. Defendant KEELY DODD (Badge #6462) is a Parole Administrator employed by CDCR/DAPO. On information and belief, Dodd's principal office and duty station are located at the DAPO Northern Region Headquarters in Sacramento County. Dodd was the final approving official whose electronic signature on Plaintiff's CDCR Form 1502-DR on November 19, 2025 converted subordinate field recommendations into binding administrative action denying discharge. The report Dodd signed contained, on its face: the "Eagan" misidentification by her subordinate Noguchi; reliance on a "6.5 years of supervision" rule that appears nowhere in any statute or regulation; application of a "10-year parole term" exclusion attributed to an internal

"Policy 19-03" that is nowhere published; a "Case Type: PC3000(b)(5)(B)" classification that is irreconcilable with the "10-year parole term" narrative; no CDCR Form 3043 attached; no treatment provider signature; and a blank service page. Notwithstanding those facial defects, Dodd elected the "Review/Decision" option, approved "Discharge Denied/No Action," and wrote: "Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time." Dodd possessed the authority to reject, correct, or remand the defective report and elected not to exercise it. On information and belief, as the Northern Region Parole Administrator responsible for SOMP-category cases, Dodd had actual or constructive knowledge of the April 17, 2025 amendments to 15 C.C.R. § 3574 and of Dwyer and Macomber. Dodd is sued individually for all causes of action pursuant to Government Code section 820(a).

8. **Non-Party Authoring Agent — Parole Agent Long Moua.** The CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, which forms the factual predicate of this action, was prepared by Parole Agent Long Moua (Badge #7472), a CDCR/DAPO employee assigned to the Stockton 2 GPS Parole Unit. Plaintiff has identified the authoring agent but elects not to name him as a defendant in this action. Agent Moua is referenced herein solely as a non-party whose acts are relevant to establish the factual predicate for the supervisory and administrative failures of the named Defendants. The report as authored contains multiple material defects—including (a) the invocation of a non-existent "6.5 years of supervision" eligibility rule (an underground regulation prohibited by Government Code section 11340.5); (b) the application of a non-existent "Policy 19-03" "10-year parole term" exclusion; (c) the simultaneous application of mutually exclusive statutory parole-term frameworks (a "Case Type: PC3000(b)(5)(B)" classification alongside a "10-year parole term" narrative); (d) internally contradictory treatment-compliance characterizations; (e) a failure to aggregate the form's mandatory objective scoring; (f) omission of all mandatory Containment Team Meeting ("CTM") documentation and of CDCR Form 3043 (Rev. 11/24); and (g) use of the obsolete CDCR Form 1502-DR (Rev. 01/22). Each defect is detailed in paragraphs 30 through 35 below. All of these defects were ratified by Defendant Noguchi on November 19, 2025 and approved by Defendant

Dodd on November 19, 2025. Defendant CDCR bears vicarious liability under Government Code section 815.2(a) for Agent Moua's acts and omissions within the course and scope of his employment.

9. Defendant GARY NOGUCHI (Badge #7284) is a Unit Supervisor employed by CDCR/DAPO. Supervisor Noguchi reviewed and ratified the report on November 19, 2025. His written comments contain the following verbatim sentence: "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." The word "Eagan" refers to a different human being. Noguchi also reported his own risk assessment of Plaintiff as "Stable 6/LSCMI 5," placing Plaintiff at a Level 2 below-average risk, while simultaneously endorsing retention on parole, and commended Plaintiff for "maintaining compliance with parole supervision" in the same document that characterized him as non-compliant for retention purposes. Those facts, together with the "Eagan" reference, show that the review was not the product of an individualized analysis of Plaintiff's circumstances. Noguchi is sued individually for all causes of action.

10. Defendant JOSEELYN ROJO is a Parole Agent employed by CDCR/DAPO who, as of November 19, 2025, was the Agent of Record responsible for serving the finalized discharge-review report on Plaintiff. She did not do so. Page 5 of the CDCR Form 1502-DR attached as Exhibit A reflects that the "Parolee Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials" fields are all blank. The 1502-DR's own "DISTRIBUTION" instruction at the footer of every page ("Original to C-File; Copy to Field File; Copy to Parolee") identifies Plaintiff as a required recipient. Rojo's failure to serve deprived Plaintiff of any opportunity to challenge the adverse decision through administrative or judicial channels within the applicable time limitations and perpetuated the unlawful restraint while concealing its existence from the person most harmed by it. Rojo is sued individually for all causes of action.

11. Defendant CALIFORNIA DEPARTMENT OF CORRECTIONS AND

REHABILITATION ("CDCR") is a department of the State of California with headquarters in Sacramento County. CDCR is vicariously liable under Government Code section 815.2(a) for injuries proximately caused by the acts and omissions of Defendants Dodd, Noguchi, and Rojo, of non-party Parole Agent Long Moua, and of Does 1 through 20, each acting within the scope of employment. CDCR is directly liable under Government Code section 815.6 for breach of the mandatory duties imposed by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574, which were designed to protect against the particular kind of injury Plaintiff suffered: continued parole supervision without lawful authority.

12. Defendants DOES 1 through 20 are sued under fictitious names pursuant to Code of Civil Procedure section 474. The Doe Defendants do not include non-party Parole Agent Long Moua, whose conduct is addressed in paragraph 8 above and for whom CDCR bears vicarious liability under Government Code section 815.2(a). Plaintiff is informed and believes that each Doe Defendant participated in one or more of the following acts: reviewing, approving, or enforcing the November 2025 discharge-review determination; authoring or promulgating at an institutional level the underground "6.5 years of supervision" rule or the non-existent "Policy 19-03" "10-year parole term" exclusion; failing to implement the April 17, 2025 amendments to 15 C.C.R. § 3574 in Plaintiff's case; or failing to serve the decision on Plaintiff. Plaintiff will amend to allege their true names and capacities when ascertained.

13. At all relevant times, each individual Defendant acted within the course and scope of employment with CDCR. The individual Defendants are sued in their individual capacities under Government Code section 820(a).

JURISDICTION AND VENUE

14. This Court has subject-matter jurisdiction under Article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10. The amount in controversy

exceeds $25,000, making this an unlimited civil case.

15. Venue is proper in Sacramento County under Code of Civil Procedure section 393(b), which provides that an action against a public officer for an act done by the officer in virtue of his or her office may be tried in the county where the cause, or some part of it, arose. The final operative act giving rise to this action—Parole Administrator Dodd's November 19, 2025 electronic ratification of the CDCR Form 1502-DR—was performed, on information and belief, from DAPO Northern Region Headquarters in Sacramento County. Venue is additionally proper under Code of Civil Procedure section 395(a) because Defendant Dodd's office is in Sacramento County and, for venue purposes in actions against a state department, CDCR resides in Sacramento County, which is its headquarters.

16. This Court has authority to issue declaratory relief under Code of Civil Procedure section 1060.

COMPLIANCE WITH THE GOVERNMENT CLAIMS ACT

17. On April 23, 2026, Plaintiff presented a government tort claim arising out of the facts alleged herein to the California Government Claims Program, the designated state claims entity for claims against CDCR. (Gov. Code §§ 900–915.4, 915(b).) The Government Claims Program processed the $25.00 filing fee payment on April 23, 2026 (Confirmation Number 26042324436661) and accepted the claim for filing. A true and correct copy of the presented claim and the fee-payment receipt are attached as Exhibit F.

18. The California Government Claims Program did not act on Plaintiff's claim within 45 days of presentation. (Gov. Code § 912.4(a).) No written notice of any action on the claim was issued or received. (Gov. Code § 913.) Plaintiff's claim is therefore deemed rejected by operation of law as of June 7, 2026, the forty-fifth day following presentation. (Gov. Code § 912.4(c).)

19. This action is timely filed within two years after the accrual of the causes of action pleaded herein. Because no written notice of rejection was ever given to Plaintiff, the two-year limitations period under Government Code section 945.6(a)(2) applies. All causes of action pleaded herein were presented in the April 23, 2026 government tort claim, and the damages and relief sought in this complaint are substantially consistent with the claim as presented.

TIMELINESS

20. Each cause of action is timely:

a. Breach of Mandatory Duty (Gov. Code § 815.6): Two years from accrual under Code of Civil Procedure section 335.1, subject to the continuing-accrual doctrine recognized in Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201. The November 19, 2025 approval is within two years of filing, and each subsequent day of continued unlawful supervision constitutes a new breach giving rise to new damages.

b. False Imprisonment (Code Civ. Proc. § 340(c)): One year from accrual, subject to the continuing-tort doctrine. False imprisonment is a continuing tort while the restraint endures. (See Watts v. Johnson (2018) 27 Cal.App.5th 734, 744 [continuing tort; limitations period does not run until the imprisonment ends]; Gressett v. Superior Court (2010) 185 Cal.App.4th 114, 124–125.) Plaintiff is still restrained as of the filing date; all damages within one year of filing are timely, and each day of continued restraint from November 19, 2025 onward is separately actionable.

c. Intentional Infliction of Emotional Distress (Code Civ. Proc. § 335.1): Two years, subject to the same continuing-accrual analysis.

d. Negligence (Code Civ. Proc. § 335.1): Two years, subject to the same continuing-accrual analysis.

e. Declaratory Relief (Code Civ. Proc. § 1060): Timely while the underlying controversy persists and damages continue to accrue.

STATUTORY AND REGULATORY FRAMEWORK

21. **Penal Code section 3001(a)(2) mandates discharge after one year.** Penal Code section 3001(a)(2) provides that a person required to register under Penal Code section 290 who has been on parole continuously for one year "shall be discharged" unless the supervising agency recommends retention and the Board of Parole Hearings, "for good cause, determines that the person will be retained on parole." The Legislature's use of the word "shall" imposes a mandatory, not discretionary, duty. (See Haggis v. City of Los Angeles (2000) 22 Cal.4th 490, 498–499 ["shall" is ordinarily mandatory for purposes of Government Code section 815.6].)

22. **Penal Code section 3008(d) requires individualized treatment determinations.** Penal Code section 3008(d) authorizes sex-offender-management-program participation as part of parole supervision but does not authorize retention for the entire term of parole as a matter of blanket policy. In In re Dwyer, San Mateo Super. Ct. Case No. SC-080355A/HC-3020 (Mar. 20, 2023) (Exh. B), the court held that CDCR's policy of retaining all registrants in a management program "for the entire term of parole, apparently without reference to the individualized performance of each parolee," vitiates the Legislature's directive.

23. **Title 15, California Code of Regulations section 3574 specifies the required procedure and documentation.** Section 3574, as amended effective April 17, 2025 and made permanent by the Office of Administrative Law's Notice of Approval of Certificate of

Compliance, OAL Matter No. 2025-0321-01, effective April 28, 2025 (Exh. D), requires that, before CDCR may recommend retention on parole of a sex-offender registrant beyond the one-year threshold, it shall: (a) convene a Containment Team Meeting ("CTM") at specified intervals under subdivision (e); (b) prepare and execute a CDCR Form 3043 (Rev. 11/24) documenting the CTM and any earned-discharge-consideration findings, and deliver the completed Form 3043 within 30 calendar days of the CTM; (c) obtain a treatment-provider signature where required; (d) articulate a written, individualized "good cause" determination under subdivision (f) tied to documented risk assessment, not to blanket noncompletion of treatment; and (e) serve the decision on the supervised person. Section 3574(f)(1), as amended, expressly provides that treatment completion and parole discharge are "legally separate decisions," displacing the prior practice—condemned in Dwyer—that tethered discharge to treatment completion as an automatic matter. The amendments also expressly provide that "supervised persons may complete a sex offender management program before discharge from parole, as contemplated by Pen. Code section 3008(d)."

24. **Government Code sections 815.2, 815.6, and 820(a) govern liability.** Government Code section 815.6 makes a public entity liable for its breach of a mandatory duty imposed by an enactment designed to protect against the kind of injury suffered, unless the entity exercised reasonable diligence. Government Code section 815.2(a) makes a public entity vicariously liable for the injuries an employee causes within the scope of employment. Government Code section 820(a) makes public employees personally liable to the same extent as private persons for injuries caused by their acts or omissions. Discretionary immunity under Government Code section 820.2 is unavailable where, as here, the duties breached are ministerial—i.e., the statutes and regulations use mandatory "shall" language, specify the precise conditions of discharge, and leave no room for policy judgment once those conditions are met. (Kavanaugh v. West Sonoma County Union High School Dist. (2003) 29 Cal.4th 911, 916 [discretionary immunity does not apply to ministerial acts].) Government Code section 820.4 does not exonerate a public employee from liability for false arrest or false imprisonment.

GENERAL ALLEGATIONS

A. Plaintiff's Parole Status, Employment Capacity, and Treatment History

25. Plaintiff was released on parole on December 2, 2020. His Controlling Discharge Date is December 2, 2030. He is required to register under Penal Code sections 290 through 290.023 and participates in the SOMP mandated by Penal Code section 3008(d). His supervision category is "SA" (Sex Offender Active); his CSRA score is 2 (Moderate); his Static-99R score reported in the 1502-DR is 4. He is supervised by the Stockton 2 GPS Parole Unit, Region N.

26. As of December 2, 2021, Plaintiff had been on parole continuously for one year and was entitled to discharge under Penal Code section 3001(a)(2) unless and until CDCR recommended retention and the Board of Parole Hearings, for good cause, determined that he would be retained on parole. No such good-cause determination by the Board has ever been articulated, documented, served on Plaintiff, or (on information and belief) made at all. As of November 19, 2025, Plaintiff had been on parole continuously for nearly five years.

27. Plaintiff is a qualified journeyman Class A CDL truck driver. The Centerline Drivers Wage Notice dated October 30, 2024 (Exh. E) confirms his qualification and a regular hourly rate of $33.35 with premium rate of $50.03 for CDL work. At that scale, Plaintiff's but-for earning capacity is not less than $72,000 per year. Typical journeyman CDL positions require multi-day, long-haul routes that are categorically incompatible with the GPS, curfew, geographic-restriction, and multi-session-per-week treatment-attendance obligations imposed on Plaintiff as a condition of continued parole. Plaintiff's W-2 records reflect lost CDL wages of not less than $109,408 for the years 2022 through 2024 alone, measured against that $72,000 annual but-for earning capacity; losses continue to accrue at approximately $6,000 per month for each month Plaintiff remains unable to pursue unrestricted CDL employment as a direct result of CDCR's continued

unlawful retention and the defective November 2025 discharge determination.

28. Plaintiff has participated in the HOPE Psychotherapy, Inc. ("HOPE") treatment program continuously since May 2021. During that period, he has been assigned to approximately nine different clinicians due to HOPE's documented staff turnover—a pattern that has destroyed continuity of care, caused lost records and homework, and forced repeated phase restarts. Despite those systemic disruptions, Plaintiff has advanced to Core Phase, Block 1, Module 4 of 7 and has maintained compliance with HOPE's participation requirements. HOPE has never certified Plaintiff as having "completed" treatment. That non-completion characterization is not an individualized clinical judgment; it is the automatic output of HOPE's blanket policy, adopted pursuant to CDCR practice, under which no parolee can "complete" treatment prior to discharge from parole. This structurally impossible standard was judicially condemned in In re Dwyer (Exh. B) and was formally repudiated by the April 17, 2025 amendments to 15 C.C.R. § 3574, as made permanent by the Office of Administrative Law, OAL Matter No. 2025-0321-01, effective April 28, 2025 (Exh. D).

B. The November 2025 Discharge Review: Documentary Defects

29. A true and correct copy of the CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, as ratified by Noguchi on November 19, 2025 and signed by Dodd on November 19, 2025, is attached as Exhibit A. Every defect identified in paragraphs 30 through 35 is visible on the face of Exhibit A without reference to any extrinsic evidence.

30. **Mutually exclusive parole-term frameworks.** Section I of Exhibit A identifies "Case Type: PC3000(b)(5)(B)." Penal Code section 3000(b)(5)(B) prescribes a parole term with a statutory range of three to five years, extendable by statute as specified therein. The narrative explanation in the report, however, invokes a "10-year parole term" to justify ineligibility. These two frameworks cannot coherently apply to the same individual. The report nowhere reconciles

them.

31. **The fabricated "6.5 years of supervision" rule.** Section II of Exhibit A contains a supervisor-comment sentence reading: "Eagan has only completed approximately 4 years of the required 6.5 years of supervision." No statute, regulation, CDCR Operations Manual provision, or formally adopted policy imposes a 6.5-year minimum parole-supervision period before a sex-offender registrant may be considered for discharge under Penal Code section 3001(a)(2). A purported rule not adopted pursuant to the California Administrative Procedure Act is an "underground regulation," prohibited by Government Code section 11340.5.

32. **The "Policy 19-03" "10-year parole term" exclusion.** The report also invokes an internal "Policy 19-03" as the source of an eligibility rule excluding "10-year parole terms" from discharge consideration. On information and belief, no published version of CDCR Policy 19-03 contains a categorical exclusion of "10-year parole terms" from discharge consideration, and no such exclusion has been adopted as a regulation under the California Administrative Procedure Act. Any rule of general application that is enforced without adoption pursuant to the Administrative Procedure Act is an underground regulation prohibited by Government Code section 11340.5. The exclusion relied upon in the report also conflicts with Penal Code section 3001(a)(2), which directs discharge after one year absent an individualized good-cause retention finding.

33. **The "Eagan" misidentification.** The verbatim sentence quoted in paragraph 31 above identifies "Eagan"—a different parolee—rather than Plaintiff. This is not a one-letter typographical error; it is a reference to a different human being by name, in a document whose very purpose is to decide whether Plaintiff's liberty should be extended. The "Eagan" sentence appears in the section of the 1502-DR that recites the supervisor's individualized analysis of the supervised person. That it references a different person is affirmative documentary evidence that no individualized analysis of Plaintiff occurred.

34. **Internally contradictory treatment and compliance characterizations.** Section II of Exhibit A simultaneously characterizes Plaintiff's parole adjustment as "maintaining compliance with parole supervision" (Noguchi's comment block) while invoking noncompletion of sex-offender treatment as a basis for retention. Under the structurally impossible treatment framework described in Dwyer (Exh. B), "noncompletion" is an automatic output, not an individualized clinical judgment, and therefore cannot supply good cause. The report also reports individual objective scores under Section II of the 1502-DR without aggregating them, without connecting them to the scoring bands printed on the form itself, and without tying them to any individualized good-cause determination.

C. Omission of Mandatory CTM Documentation and Good-Cause Finding

35. Exhibit A contains no CDCR Form 3043 (Rev. 11/24). It contains no signature of any CASOMB-certified treatment provider. It contains no entry reflecting that any CTM was convened. It contains no written, individualized good-cause finding by the Agent of Record, Unit Supervisor, District Administrator, or Administrative Review Officer, as those officers are identified in Section 6 of CDCR Form 3043. The boxes and signature lines on CDCR Form 3043 that correspond to the CTM process are blank, unfilled, or absent. The obsolete CDCR Form 1502-DR (Rev. 01/22) was used in lieu of CDCR Form 3043 (Rev. 11/24), despite the April 17, 2025 regulatory amendments that replaced the prior procedure.

36. On information and belief, the Board of Parole Hearings has never made, entered, or served any written good-cause retention finding with respect to Plaintiff. Under Penal Code section 3001(a)(2), the absence of such a Board finding is alone sufficient to render Plaintiff's continued retention unauthorized.

D. Defendants' Knowledge of Unlawfulness

37. By November 2025, each Defendant had actual or constructive knowledge that the practices applied to Plaintiff had been judicially condemned and legislatively repudiated. In Dwyer (Exh. B, March 20, 2023), a superior court held that CDCR's policy of retaining all registrants in a management program for the entire term of parole, without reference to individual performance, vitiates the Legislature's directive. In Alliance for Constitutional Sex Offense Laws v. Macomber, L.A. Sup. Ct. Case No. 23STCP02378 (Exh. C), the court overruled CDCR's demurrer in December 2023, holding that a petition alleging these statewide practices stated a valid cause of action for ordinary mandate. The resulting litigation produced the April 17, 2025 amendments to 15 C.C.R. § 3574 (made permanent by OAL Matter No. 2025-0321-01 effective April 28, 2025, Exh. D), which expressly allow completion of a sex-offender-management program before discharge, and which add the mandatory CTM and Form 3043 procedure.

38. On information and belief, Parole Administrator Dodd, in her capacity as Northern Region Parole Administrator responsible for SOMP cases, had actual knowledge of the April 2025 regulatory amendments and of the Dwyer and Macomber decisions. On information and belief, Unit Supervisor Noguchi and Parole Agent Rojo, as SOMP-caseload employees of DAPO, had actual or constructive knowledge of the same. On information and belief, non-party Agent Moua, as the Parole Agent who prepared the 1502-DR on November 14, 2025, had actual or constructive knowledge of the same. Defendants (and, through them, CDCR) applied the pre-amendment framework anyway.

E. Nonservice of the Final Decision

39. On and after November 19, 2025, Defendant Rojo was the Agent of Record responsible for serving the finalized 1502-DR on Plaintiff. The CDCR Form 1502-DR's own DISTRIBUTION footer ("Original to C-File; Copy to Field File; Copy to Parolee") identifies Plaintiff as a required recipient, and page 5 of Exhibit A provides dedicated fields for "Parolee

Provided Copy (Date)," "Mailed By Initials," and "Delivered By Initials." Those three fields are each blank. Plaintiff was not served with the finalized report at or after its November 19, 2025 approval by any method—no personal delivery, no mail, no electronic delivery, and no parolee-copy notation in his CDCR file.

40. **How Plaintiff first obtained Exhibit A.** Plaintiff first obtained a copy of the finalized CDCR Form 1502-DR attached hereto as Exhibit A on or about January 2, 2026, when Plaintiff went in person to the Stockton 2 GPS Parole Unit office at 612 Carlton Avenue, Stockton, California 95203, and requested a copy from the Officer of the Day. No CDCR employee, including Defendant Rojo as Agent of Record, served the finalized report on Plaintiff at or before that date by any method. The copy provided to Plaintiff on January 2, 2026 is attached hereto as Exhibit A and has been preserved by Plaintiff in its as-obtained condition.

41. **Prejudice from nonservice.** The nonservice of the finalized discharge-review decision caused concrete prejudice. As a direct result of the nonservice, Plaintiff was unable to invoke any administrative-grievance, appeal, or habeas-corpus remedy within the time limitations that would otherwise apply to challenge the November 19, 2025 denial. The nonservice thereby both perpetuated the unlawful restraint and concealed the existence of the adverse decision from the person most harmed by it.

F. The Nature of Plaintiff's Injuries

42. **Continued unlawful parole supervision.** As a direct and proximate result of Defendants' acts and omissions, Plaintiff has been and continues to be subjected to parole supervision imposing 24-hour-per-day GPS monitoring; a nightly curfew; geographic restrictions; mandatory sex-offender-treatment attendance of approximately six to eight hours per week (including travel); warrantless searches of his person, residence, and vehicle; restrictions on association and employment; and the constant threat of reincarceration for any technical violation.

Every day of continued supervision from November 19, 2025 through the date of judgment is a day of unauthorized restraint.

43. **Loss of liberty (per-diem value).** The restraints described in paragraph 42 are substantial. Plaintiff seeks loss-of-liberty damages of not less than $100 per day from November 19, 2025 through the date of judgment, according to proof at trial. As a legislative reference point, Penal Code section 4904 sets compensation of not less than seventy dollars ($70) per day for certain categories of wrongfully imposed parole supervision in its indemnification framework. Plaintiff does not premise his damages on that framework; he cites it only as an indication that California law recognizes substantial per-diem value for lost liberty. The $100-per-day figure reflects the enhanced restrictions at issue here, including 24-hour-per-day GPS monitoring, curfew, multi-session-per-week mandatory treatment attendance, and warrantless searches.

44. **Documented economic losses—lost CDL wages.** Plaintiff's W-2 records reflect documented lost CDL wages of not less than $109,408 for the years 2022 through 2024, measured against his $72,000 per year but-for earning capacity as a journeyman CDL holder (Exh. E). Losses continue to accrue at approximately $6,000 per month for each month Plaintiff remains unable to pursue unrestricted CDL employment as a direct result of his continued unlawful retention. Economic losses before November 19, 2025 flow from CDCR's continuing breach of its mandatory duty under Penal Code section 3001(a)(2) and 15 C.C.R. § 3574 to discharge Plaintiff absent a lawful good-cause retention finding, which has never existed. Economic losses from and after November 19, 2025 are directly and proximately caused by the individual Defendants' acts and omissions culminating in Dodd's November 19, 2025 ratification of the defective 1502-DR.

45. **Out-of-pocket costs of forced compliance.** Plaintiff has incurred and continues to incur direct out-of-pocket costs as a result of his unlawful supervision, including but not limited to: (a) transportation costs to and from mandatory HOPE treatment sessions (approximately 30

miles round-trip, multiple times per week), at or near the Internal Revenue Service standard mileage rate; (b) the time value of attendance, estimated at six to eight hours per week; (c) polygraph examinations and other mandated assessments; and (d) the costs of maintaining and charging GPS equipment.

46. **Severe emotional distress and reputational harm.** Plaintiff has suffered and continues to suffer severe emotional distress, including pervasive anxiety from continuous GPS monitoring on a fabricated basis, depression, sleep disruption, hypervigilance, fear of reincarceration on procedurally void grounds, humiliation and indignity from being classified as "non-compliant" on a review that identified a different human being by name, and reputational harm from being publicly labeled as having "failed" a treatment program in which completion was structurally unattainable.

G. Continuing-Tort Allegation

47. Each day from November 19, 2025 through the date of judgment is a separate day of unauthorized restraint and a separate breach of the mandatory duties owed to Plaintiff under Penal Code section 3001(a)(2) and 15 C.C.R. § 3574. Each such day gives rise to separate damages. Under the continuing-tort doctrine, the applicable limitations period has not begun to run as to any restraint that is still in effect. (See Watts v. Johnson (2018) 27 Cal.App.5th 734, 744; Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.)

H. Scope of Conduct Challenged

48. CDCR's statewide policies and practices unlawfully extended Plaintiff's parole conditions throughout his supervision term. The *specific* acts challenged in the tort causes of action pleaded below (the Second, Third, and Fourth Causes of Action) are the November 2025 discharge review and Defendant Dodd's November 19, 2025 approval, which made Plaintiff's

continued parole supervision after November 19, 2025 unlawful. The mandatory-duty cause of action (First Cause of Action, against CDCR only) additionally and independently challenges CDCR's continuing failure, since December 2, 2021, to perform the discharge-review procedures mandated by Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574—a continuing breach for which CDCR is liable under Government Code section 815.6. The declaratory-relief cause of action seeks a judicial declaration as to the validity of the November 19, 2025 determination and Plaintiff's corresponding rights.

I. Damages Allocation by Cause of Action

49. To avoid any causation ambiguity, Plaintiff expressly allocates damages by cause of action as follows:

a. **First Cause of Action (Breach of Mandatory Duty, Gov. Code §§ 815.2, 815.6, against CDCR only):** CDCR's continuing breach of its mandatory duties under Penal Code section 3001(a)(2) and Title 15, California Code of Regulations section 3574 commenced on December 2, 2021 (the one-year threshold) and has continued every day since. Under the continuing-accrual doctrine, each day of that breach is separately actionable. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.) *Damages on this count include:* (i) documented lost CDL wages of not less than $109,408 for 2022 through 2024; (ii) continuing lost CDL wages of approximately $6,000 per month from January 2025 forward; (iii) out-of-pocket compliance costs from December 2, 2021 forward; and (iv) loss-of-liberty and emotional-distress damages, measured per-diem at not less than $100 per day, from November 19, 2025 forward. Plaintiff also pleads in the alternative, to the extent per-diem loss-of-liberty damages are recoverable on this count for the full period of continuing breach, that the particular injury Penal Code section 3001(a)(2) was designed to prevent is unlawful custodial restraint of persons past the statutory discharge point, such that a per-diem valuation is a direct

measure of the very harm the statute exists to prevent. (Cf. Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 720 [damages principles from false imprisonment inform unlawful-detention analysis].) Causation on this count rests on the continuing failure to discharge, not on the November 19, 2025 act.

b. **Second Cause of Action (False Imprisonment, against all Defendants):** The operative wrongful act is Defendant Dodd's November 19, 2025 ratification of the defective 1502-DR, which converted the defective field recommendation into binding state action without lawful privilege. *Damages on this count are limited to harm proximately caused after November 19, 2025*, including: (i) loss of liberty at not less than $100 per day from November 19, 2025 through the date of judgment, according to proof; (ii) post-November 19, 2025 out-of-pocket compliance costs; (iii) post-November 19, 2025 economic losses; and (iv) post-November 19, 2025 emotional-distress damages. Each day of continued restraint from November 19, 2025 forward is a separately actionable occurrence under the continuing-tort doctrine. (Watts v. Johnson (2018) 27 Cal.App.5th 734, 744.)

c. **Third Cause of Action (Intentional Infliction of Emotional Distress, against the named individual Defendants):** The operative conduct is the authoring, ratification, approval, and nonservice of the November 2025 discharge review. *Damages on this count are limited to harm proximately caused from the November 2025 review forward*, including post-November 19, 2025 severe emotional distress, humiliation, and reputational harm, together with punitive and exemplary damages under Civil Code section 3294.

d. **Fourth Cause of Action (Negligence, against the named individual Defendants):** The operative breaches are the ministerial failures in the November 2025 discharge review culminating in Dodd's November 19, 2025 approval. *Damages on this*

count are limited to harm proximately caused from November 19, 2025 forward, including post-November 19, 2025 loss of liberty, post-November 19, 2025 out-of-pocket compliance costs, and post-November 19, 2025 emotional-distress damages.

e. **Fifth Cause of Action (Declaratory Relief):** No monetary damages are sought on this count; Plaintiff seeks only the declarations enumerated in the Prayer for Relief.

50. Plaintiff does not seek double recovery. To the extent any single item of damages is recoverable under more than one count, judgment shall be entered once, and the most favorable count shall control.

FIRST CAUSE OF ACTION

BREACH OF MANDATORY DUTY (Gov. Code §§ 815.2, 815.6)
(Against CDCR)

51. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

52. **Elements.** The elements of a cause of action under Government Code section 815.6 are: (1) an enactment imposing a mandatory duty on the public entity; (2) the enactment was designed to protect against the kind of injury the plaintiff suffered; (3) breach of the duty; and (4) proximate causation of injury. (Haggis v. City of Los Angeles (2000) 22 Cal.4th 490, 498–499; State of California v. Superior Court (Bodde) (2004) 32 Cal.4th 1234, 1243.) Government Code section 815.2(a) makes a public entity liable for injuries caused by its employees acting within the scope of employment to the extent those employees are personally liable.

53. **Continuing breach since December 2, 2021.** On December 2, 2021, the statutory one-year threshold of Penal Code section 3001(a)(2) was reached. On that date, CDCR became

obligated to discharge Plaintiff unless it recommended retention to the Board of Parole Hearings and the Board, for good cause, determined that he would be retained on parole. CDCR did not discharge Plaintiff on December 2, 2021 or at any time thereafter, and on information and belief the Board of Parole Hearings has never entered any good-cause retention finding with respect to Plaintiff. Each day from December 2, 2021 through the present is a separately actionable breach giving rise to independent damages. The continuing-accrual doctrine governs this count. (Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185, 1197–1201.) This cause of action does not depend on, and its damages are not limited by reference to, Defendant Dodd's November 19, 2025 approval.

54. **Enactment-by-enactment breach.** The following enactments impose mandatory duties on CDCR and its employees. Each was designed to protect against the particular injury Plaintiff has suffered—continued parole supervision without lawful authority. Each was breached as specified:

a. **Penal Code § 3001(a)(2):** A parolee "who has been on parole continuously for one year since release from confinement ... shall be discharged ... unless the Department of Corrections and Rehabilitation recommends to the Board of Parole Hearings that the person be retained on parole and the board, for good cause, determines that the person will be retained." *Breach:* CDCR has failed to discharge Plaintiff at any time since the one-year threshold was reached on December 2, 2021. On information and belief, the Board of Parole Hearings has never made any good-cause retention finding with respect to Plaintiff.

b. **15 C.C.R. § 3574(e):** CDCR "shall" convene a Containment Team Meeting ("CTM") at specified intervals. *Breach:* No CTM was convened in connection with Plaintiff's November 2025 discharge review, and no CTM record appears in Exhibit A or is reflected on any CDCR Form 3043 for Plaintiff.

c. **15 C.C.R. § 3574(f):** A written, individualized "good cause" determination shall be entered before retention and shall be tied to documented risk assessment rather than to blanket noncompletion of treatment. *Breach:* No written good-cause finding appears anywhere in Exhibit A. The stated justification rests on (i) a fabricated "6.5 years of supervision" rule, (ii) a non-existent "Policy 19-03" exclusion, and (iii) noncompletion of HOPE treatment—which, under CDCR's own blanket policy and as shown in Dwyer, is structurally unattainable and cannot supply good cause.

d. **15 C.C.R. § 3574 (procedure and form):** CDCR Form 3043 (Rev. 11/24) shall be prepared, executed (including, where required, by the treatment provider), and delivered within 30 calendar days of the CTM. *Breach:* No CDCR Form 3043 exists for Plaintiff; the obsolete CDCR Form 1502-DR (Rev. 01/22) was used in its place; no treatment-provider signature appears on any document in Plaintiff's 2025 discharge review; and no 30-day delivery occurred.

e. **15 C.C.R. § 3574(f)(1) (as amended effective April 17, 2025; made permanent OAL Matter No. 2025-0321-01, April 28, 2025):** Treatment completion and parole discharge are "legally separate decisions." *Breach:* CDCR tethered the two impermissibly by citing Plaintiff's non-completion of HOPE as a basis for retention, notwithstanding the amendment's express decoupling of the two determinations.

f. **Government Code § 11340.5:** No state agency shall enforce "any ... rule, regulation, order, or standard of general application ... unless [it] has been adopted as a regulation and filed with the Secretary of State" under the Administrative Procedure Act. *Breach:* CDCR enforced against Plaintiff (i) the "6.5 years of supervision" eligibility rule and (ii) the "Policy 19-03" "10-year parole term" exclusion. Neither has been adopted as a regulation; both are underground regulations.

g. **CDCR's own distribution mandate (printed on every page of CDCR Form 1502-DR and CDCR Form 3043):** "Original to C-File; Copy to Field File; Copy to Parolee." *Breach:* The service fields on page 5 of Exhibit A ("Parolee Provided Copy (Date)," "Mailed By Initials," "Delivered By Initials") are blank. Plaintiff was never served with the finalized report.

55. **Which Defendants committed which breach.** The breaches above were committed as follows: paragraphs 49(a)–(g) are all attributable to CDCR directly under Government Code section 815.6 and vicariously under Government Code section 815.2(a) through its supervisory employees and non-party Parole Agent Long Moua. Paragraphs 49(b)–(f) were personally committed or ratified by the authoring agent, by Defendant Noguchi (ratification on November 19, 2025), and by Defendant Dodd (final approval on November 19, 2025). Paragraph 49(g) was personally committed by Defendant Rojo, who was the Agent of Record responsible for service as of November 19, 2025.

56. **Ministerial, not discretionary.** The duties breached are ministerial. Each enactment uses mandatory "shall" language. Each specifies precise conditions and procedures. None leaves room for the exercise of policy judgment once the statutory conditions are met. Accordingly, the discretionary-immunity defense under Government Code section 820.2 is unavailable. (Haggis, 22 Cal.4th at 498–499; Kavanaugh, 29 Cal.4th at 916.)

57. **Reasonable diligence not exercised.** CDCR did not exercise reasonable diligence. It applied the very practices judicially condemned in Dwyer (March 2023) and continued to use an obsolete form and procedure despite the April 17, 2025 regulatory amendments enacted specifically to correct those deficiencies.

58. **Causation and damages.** As a direct and proximate result, Plaintiff has suffered: (a)

continued parole supervision, including continuous GPS monitoring, geographic restrictions, curfew, mandatory treatment attendance, and warrantless searches; (b) documented economic losses of not less than $109,408 in lost CDL wages for 2022 through 2024 attributable to CDCR's continuing failure to discharge him after December 2, 2021; (c) ongoing wage losses of approximately $6,000 per month; (d) loss of liberty valued at not less than $100 per day from November 19, 2025; (e) out-of-pocket compliance costs; and (f) severe emotional distress. Liability is joint and several as between CDCR (directly under section 815.6 and vicariously under section 815.2) and the individual Defendants (personally under section 820(a) via the Second through Fourth Causes of Action).

SECOND CAUSE OF ACTION

FALSE IMPRISONMENT

(Against All Defendants)

59. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

60. **Elements.** The elements of false imprisonment are: (1) the nonconsensual, intentional confinement of a person; (2) without lawful privilege; and (3) for an appreciable period of time, however brief. (Fermino v. Fedco, Inc. (1994) 7 Cal.4th 701, 715.) Government Code section 820.4 does not exonerate a public employee from liability for false imprisonment.

61. **Nonconsensual confinement.** Plaintiff did not and does not consent to continued parole supervision beyond the statutory discharge point. Since November 19, 2025, he has been subjected, without consent, to the following concrete restraints: continuous 24-hour-per-day GPS monitoring; a nightly curfew; geographic restrictions; mandatory treatment-attendance obligations consuming six to eight hours per week; warrantless searches of his person, residence, and vehicle; restrictions on association and employment; and the threat of reincarceration for any

technical violation.

62. **Absence of lawful privilege.** The confinement described in paragraph 61 is without lawful privilege. On information and belief, each of the following—any one of which alone suffices to negate privilege—is true: (a) no good-cause retention finding by the Board of Parole Hearings under Penal Code section 3001(a)(2) has been made with respect to Plaintiff, served on him, or provided to him on request; (b) the "6.5 years of supervision" rule relied upon in Exhibit A is an underground regulation prohibited by Government Code section 11340.5; (c) the "Policy 19-03" "10-year parole term" exclusion relied upon in Exhibit A has not been adopted as a regulation under the Administrative Procedure Act and is unenforceable; (d) the report identifies a different parolee by name ("Eagan") and therefore does not document an individualized determination as to Plaintiff—identity verification is a basic ministerial duty (see Sullivan v. County of Los Angeles (1974) 12 Cal.3d 710, 718; Gillan v. City of San Marino (2007) 147 Cal.App.4th 1033, 1044–1045); (e) the mandatory CTM documentation and Form 3043 required by 15 C.C.R. § 3574 are missing from Exhibit A; (f) the obsolete CDCR Form 1502-DR (Rev. 01/22) was used after the April 17, 2025 regulatory amendments requiring Form 3043 (Rev. 11/24); and (g) the decision was not served on Plaintiff, as shown by the blank service fields on page 5 of Exhibit A.

63. **Appreciable period.** Plaintiff has been restrained under the conditions described in paragraph 61 continuously from November 19, 2025 through the date of this complaint, and that restraint continues. Under the continuing-tort doctrine, each day of continued restraint is separately actionable. (Watts v. Johnson, supra, 27 Cal.App.5th at p. 744.)

64. **Legislative reference for per-diem value.** Penal Code section 4904, within its indemnification framework, sets compensation of not less than seventy dollars ($70) per day for certain wrongfully imposed parole supervision. Plaintiff does not proceed under section 4904; he cites it only to show that California law recognizes significant per-diem value for lost liberty. The

specific per-diem value in this case will be proved at trial and in no event less than $100 per day, reflecting the restrictions described in paragraph 61.

65. **Individual Defendants' participation.** Dodd's November 19, 2025 electronic ratification was the single proximate act that converted the defective recommendation into binding administrative action; her signature was the final, sine-qua-non step that extended Plaintiff's constructive custody beyond the point at which Penal Code section 3001(a)(2) required discharge. But for Dodd's approval, the denial would not have become final, and Plaintiff would not have remained subject to continued GPS monitoring, curfew, travel restrictions, mandatory treatment attendance, and the threat of reincarceration after November 19, 2025. Noguchi ratified the defective report, including the "Eagan" reference, in the face of facial defects any reasonable supervisor would have returned for correction. Rojo failed to serve the finalized report, concealing the unlawful restraint from Plaintiff. The non-party authoring agent's fabrications—for which CDCR bears vicarious liability under Government Code section 815.2(a)—supplied the defective foundation upon which the supervisory chain relied. Each named individual Defendant is liable as a participant in the confinement. (Sullivan, supra, 12 Cal.3d at p. 718.)

66. **Damages—limited to post-November 19, 2025 harm.** Damages on this cause of action are limited to harm proximately caused by Defendants' acts on and after November 19, 2025. Those damages include: (a) loss of liberty valued at not less than $100 per day from November 19, 2025 through the date of judgment, according to proof; (b) out-of-pocket costs of forced compliance incurred from November 19, 2025 forward; (c) severe emotional distress suffered from November 19, 2025 forward; and (d) economic losses, including lost CDL wages, proximately caused by the continued restraint from November 19, 2025 forward. Plaintiff does not seek pre-November 19, 2025 damages on this count; such damages are sought separately under the First Cause of Action against CDCR.

THIRD CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

(Against All Individual Defendants)

67. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

68. **Elements.** The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause, or reckless disregard of the probability of causing, emotional distress; (3) severe emotional distress suffered by the plaintiff; and (4) actual and proximate causation. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.) Conduct is particularly likely to be outrageous when directed by an actor with power to affect the plaintiff's interests, such as a custodial official. (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 498–499.)

69. **Extreme and outrageous conduct—the Eagan error.** Unit Supervisor Noguchi personally typed, reviewed, and electronically signed a recommendation that determined Plaintiff's continued loss of liberty, but the recommendation's own supervisor-comment sentence identifies a different human being—"Eagan"—by name. Confining a person based on a document that does not attempt to refer to that person is extreme and outrageous conduct by an actor with custodial authority. It demonstrates, by documentary proof, that the review was not individualized, that the deprivation of liberty was arbitrary, and that Plaintiff was treated not as an individual but as a bureaucratic placeholder whose freedom was decided through a template.

70. **Additional extreme and outrageous conduct.** In addition to the Eagan error, Defendants: (a) relied on a 6.5-year supervision rule that appears nowhere in any statute or regulation; (b) invoked a "Policy 19-03" "10-year parole term" exclusion that appears in no published version of Policy 19-03; (c) applied mutually exclusive parole-term frameworks to the same person; (d) continued using a framework judicially condemned in Dwyer more than two and

a half years earlier and repudiated by regulatory amendment seven months earlier; (e) withheld notice from Plaintiff in order to foreclose any meaningful opportunity to contest the adverse decision; and (f) adopted a non-completion characterization of treatment that is the automatic output of a blanket-retention policy rather than an individualized clinical judgment.

71. **Intent/reckless disregard.** Each individual Defendant acted with, at minimum, reckless disregard of the probability of causing severe emotional distress. By November 2025, Dwyer, Macomber, and the April 2025 regulatory amendments supplied cumulative, escalating notice that these practices were unlawful. Dodd's approval of a facially defective report as the Northern Region Parole Administrator responsible for SOMP cases supports an inference of either actual knowledge or reckless disregard. Noguchi's insertion of the "Eagan" reference into a document signed electronically under his own name supports the same inference.

72. **Severe distress.** Plaintiff has suffered severe emotional distress as described in paragraph 46 above, including anxiety, depression, sleep disruption, hypervigilance, fear, humiliation, and reputational harm. Damages on this count are limited to severe emotional distress proximately caused from the November 2025 review forward; Plaintiff does not seek pre-November 2025 emotional-distress damages on this count.

73. **Punitive damages.** The conduct of the named individual Defendants constitutes oppression and malice within the meaning of Civil Code section 3294. Noguchi's ratification of a report that identifies a different parolee by name—and Dodd's subsequent final approval of that report—demonstrates conscious disregard of Plaintiff's rights and safety. Rojo's failure to serve the decision was, on information and belief, deliberate and designed to foreclose administrative and judicial review. No reasonable administrator could believe that depriving a person of liberty based on (a) a document that identifies someone else, (b) an eligibility rule that does not exist, and (c) no service on the affected individual is lawful. Punitive damages are sought only against the named individual Defendants (Dodd, Noguchi, and Rojo), not against CDCR. (Gov. Code §

818.)

FOURTH CAUSE OF ACTION

NEGLIGENCE

(Against All Individual Defendants)

74. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

75. **Duty.** Each individual Defendant owed Plaintiff a duty of care arising from: (a) the custodial authority exercised over him as a parolee; (b) the mandatory, ministerial duties imposed by Penal Code sections 3000, 3001, and 3008, and by 15 C.C.R. § 3574; and (c) the general duty of reasonable care owed under Government Code section 820(a). Dodd owed particularized duties as the final approving official: the duty to ensure regional discharge decisions comply with the governing statutes and regulations; the duty to reject or remand any review that relies on non-enacted eligibility criteria, misidentifies the supervised person, or omits mandatory forms and findings; the duty to implement the April 2025 regulatory amendments in all Northern Region SOMP cases; and the duty to perform a meaningful individualized review before signing a document extending the State's jurisdiction over a person's liberty.

76. **Breach.** Each named individual Defendant breached the duty of care. Noguchi ratified a report identifying a different person by name ("Eagan"), relying on fabricated eligibility criteria (the non-existent 6.5-year rule and "Policy 19-03" exclusion), internally contradicting itself as to compliance, using an obsolete form, omitting CTM and Form 3043 documentation, and reflecting no aggregation of mandatory objective scoring—all without independent verification or correction. Dodd approved that facially defective report as the final administrative gatekeeper; any reasonable administrator would have remanded it. Rojo failed to serve the decision on Plaintiff. Each breach was a ministerial failure, not a discretionary policy choice. CDCR

additionally bears vicarious liability under Government Code section 815.2(a) for the breaches of duty by its non-party authoring agent.

77. **Causation.** Each breach was a substantial factor in causing Plaintiff's injuries. A reasonable parole agent, supervisor, or administrator in each Defendant's position would have recognized that the defects in the discharge review created a foreseeable risk of prolonged unlawful supervision and resulting harm.

78. **Damages—limited to post-November 19, 2025 harm.** As a direct and proximate result of the individual Defendants' breaches, Plaintiff has suffered, from and after November 19, 2025, loss of liberty, out-of-pocket costs of forced compliance, economic losses proximately caused by the continued restraint, and severe emotional distress. Plaintiff does not seek pre-November 19, 2025 damages on this count; such damages are sought separately under the First Cause of Action against CDCR.

FIFTH CAUSE OF ACTION

DECLARATORY RELIEF (Code Civ. Proc. § 1060)
(Against CDCR)

79. Plaintiff incorporates paragraphs 1 through 50 as though fully set forth herein.

80. **Actual controversy.** An actual, present, and justiciable controversy exists between Plaintiff and CDCR concerning: (a) whether the November 19, 2025 discharge-review determination reflected in Exhibit A is valid as a matter of law; (b) whether the "6.5 years of supervision" rule applied to Plaintiff is a properly adopted regulation or an underground regulation prohibited by Government Code section 11340.5; (c) whether the "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is a properly adopted regulation or an

underground regulation prohibited by Government Code section 11340.5; (d) whether CDCR may, consistent with Penal Code section 3001(a)(2) and 15 C.C.R. § 3574, retain Plaintiff on parole without a Board of Parole Hearings good-cause determination documented in a CDCR Form 3043 (Rev. 11/24) and served on Plaintiff; and (e) whether Plaintiff is entitled to have CDCR conduct a lawful discharge review consistent with the April 17, 2025 amendments before any further denial of discharge.

81. **Requested declaration.** Plaintiff seeks a judicial declaration that:

a. The November 19, 2025 discharge-review determination is void because it rests on an underground regulation, applies mutually exclusive parole-term frameworks, identifies a different parolee by name, omits mandatory CTM and Form 3043 documentation, lacks any Board of Parole Hearings good-cause determination, and was never served on Plaintiff;

b. The "6.5 years of supervision" rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

c. The "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

d. Plaintiff's continued parole supervision from November 19, 2025 forward is unauthorized and unlawful; and

e. Plaintiff is entitled to a lawful discharge review in full compliance with Penal Code sections 3000, 3001, and 3008, and 15 C.C.R. § 3574, with service on Plaintiff and

an opportunity to be heard, before any further retention of Plaintiff on parole.

82. **Necessity and propriety.** A judicial declaration is necessary and proper to resolve the controversy, to avoid multiplicity of actions, and to establish the rights and obligations of the parties with respect to Plaintiff's continued parole supervision. Declaratory relief is particularly appropriate here because the defective discharge-review determination is the immediate cause of Plaintiff's continuing loss of liberty and economic harm, and because the underlying statewide policies have already been held to state a valid cause of action for mandate in Alliance for Constitutional Sex Offense Laws v. Macomber.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for judgment in his favor and against Defendants, and each of them, as follows:

A. Economic Damages

1. **Against CDCR on the First Cause of Action (continuing breach since December 2, 2021):** lost CDL wages (as reflected in Plaintiff's W-2 records and the Centerline Drivers Wage Notice attached as Exhibit E, and in no event less than $109,408 for the years 2022 through 2024), continuing lost CDL wages, out-of-pocket compliance costs, and related economic losses, all according to proof at trial;

2. **Against all Defendants on the Second and Fourth Causes of Action (limited to harm accruing on and after November 19, 2025):** lost CDL wages, out-of-pocket compliance costs, and related economic losses, according to proof at trial;

3. All other past and future economic losses according to proof at trial, subject to

the count-by-count allocation set forth in paragraph 49 above.

B. Non-Economic Damages

1. Loss of liberty from continued parole supervision, valued at not less than $100 per day, from November 19, 2025 through the date of judgment. Plaintiff pleads in the alternative that, because the particular injury Penal Code section 3001(a)(2) was designed to prevent is unlawful custodial restraint of persons past the statutory discharge point, a per-diem measure of loss-of-liberty damages on the First Cause of Action against CDCR is proper for the full period of continuing breach from December 2, 2021 through the date of judgment—according to proof at trial;

2. Severe emotional distress, humiliation, and reputational harm, according to proof at trial;

3. All other past and future non-economic damages according to proof at trial.

C. Punitive and Exemplary Damages

1. Punitive and exemplary damages against each named individual Defendant (Dodd, Noguchi, and Rojo) in his or her individual capacity in an amount sufficient to punish and deter, pursuant to Civil Code section 3294, based on conscious disregard of Plaintiff's rights, including without limitation: Noguchi's ratification of a report that identified a different parolee by name and that relied on the fabricated 6.5-year rule and non-existent "Policy 19-03" exclusion; Dodd's final approval of that report despite facial defects; and Rojo's failure to serve the decision. Punitive damages are sought only against the named individual Defendants, not against CDCR. (Gov. Code § 818.)

D. Declaratory Relief

1. A judgment declaring that the CDCR Form 1502-DR Discharge Review Report dated November 14, 2025, as ratified on November 19, 2025 by Defendant Noguchi and approved on November 19, 2025 by Defendant Dodd, is void as a matter of law and without legal effect;

2. A judgment declaring that the "6.5 years of supervision" eligibility rule applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

3. A judgment declaring that the "Policy 19-03" "10-year parole term" exclusion applied to Plaintiff is an underground regulation prohibited by Government Code section 11340.5 and is unenforceable against Plaintiff;

4. A judgment declaring that Plaintiff's continued parole supervision from November 19, 2025 forward is unauthorized and unlawful; and

5. A judgment declaring that Plaintiff is entitled to discharge from parole unless and until (a) a discharge review is lawfully conducted in full compliance with Penal Code sections 3000, 3001, and 3008, and Title 15, California Code of Regulations section 3574 (including a properly convened Containment Team Meeting documented on CDCR Form 3043 (Rev. 11/24), a treatment-provider signature where required, and service on Plaintiff); and (b) a written good-cause retention finding is entered by the Board of Parole Hearings under Penal Code section 3001(a)(2).

E. Other Relief

1. Costs of suit incurred herein;

2. Pre-judgment and post-judgment interest as permitted by law, including under Civil Code section 3287 and any applicable provisions of the Government Code;

3. Such other and further relief as this Court deems just and proper.

ELECTION OF TRIAL BY COURT

Plaintiff does not demand a jury trial and elects trial by the court on all issues so triable. (Cal. Const., art. I, § 16; Code Civ. Proc. § 631.)

Dated: June 15, 2026

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Plaintiff in the above-entitled action. I have read the foregoing Verified Complaint for Damages and Declaratory Relief and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on June 15, 2026,

at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

Exhibit A — CDCR Form 1502-DR Discharge Review Report dated November 14, 2025 (ratified by Unit Supervisor Gary Noguchi on November 19, 2025; approved by Parole Administrator Keely Dodd on November 19, 2025).

Exhibit B — In re Frederick Dwyer, San Mateo County Superior Court Case No. SC-080355A, HC-3020, Order dated March 20, 2023.

Exhibit C — Alliance for Constitutional Sex Offense Laws v. Macomber, Los Angeles County Superior Court Case No. 23STCP02378, Petition for Writ of Mandate (July 10, 2023) and Order Overruling Demurrer (December 2023).

Exhibit D — State of California Office of Administrative Law, Amended Notice of Approval of Certificate of Compliance, Title 15, California Code of Regulations section 3574 (OAL Matter No. 2025-0321-01, effective April 28, 2025).

Exhibit E — Centerline Drivers Wage Notice dated October 30, 2024 (Plaintiff's CDL qualification and pay rates).

Exhibit F — Verified Government Tort Claim presented April 23, 2026 to the California Government Claims Program, together with the Government Claims Online Filing Fee Receipt dated April 23, 2026 (Confirmation Number 26042324436661).

EXHIBIT A

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

SECTION I PAROLEE PROFILE Case Type: **PC3000(b)(5)(B)**

CDC Number:	Print Name (Print Last, First, MI):		Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**		**N**	**STOCKTON 2 GPS**
CSRA Score:	Supervision Category:	Discharge Review Date:	Controlling Discharge Date:	
2	**SA**	**12-01-2025**	**12-02-2030**	

Commitment Offenses:
PC289(a)(1)(A)[01] Penetration w/Force/Violence/Fear of Immediate Bodily Injury, PC220(a)(1)[01] Assault with Intent to Commit Specific Sex Offense

Imminent Discharge: [X] | DNA Sample Obtained: [X] YES [ ] NO | Non-Controlling Offenses: [X] YES [ ] NO

Commitment Offense Subject To PC 667.5(C): [X] YES [ ] NO | Commitment Offense Subject To PC1192.7 9 (C) or 1192.8: [X] YES [ ] NO

PC 290 Registrant: [X] YES* [ ] NO * If Yes, Sex Offender Static Risk Assessment: Score: 4

Other Registration Requirements: [ ] PC 457.1 [ ] PC 186.30 [X] NONE

Circumstances of Commitment Offense (Note any weapons used or possessed during the controlling or non-controlling offense):

According to Santa Clara County Probation Officer's Report, Santa Clara Police Department officers responded to a report of sexual assault which occurred at the Santa Clara University. The Victim (V1) stated she left her friend's dormitory at 2000 hours and proceeded to her dormitory. As she was walking, a man later identified as Brendan Newanforbi, approached her from behind, picked her up and carried her approximately five feet. Newanforbi dropped V1 on the ground and inserted his fingers into her vagina. V1 screamed and resisted Newanforbi so Newanforbi fled the scene. V1 was transported to the Valley Medical Center for a SART exam. V1 sustained abrasions to her left knee, left hip area, left wrist and complained of pain to her vagina. Officers reviewed surveillance footage from cameras and showed a figure running, and a grey ford mustang fleeing the scene. On 03/03/2017, Newanforbi was stopped for speeding and taken into custody for matching the description. Newanforbi self- admitted to groping V1 and stated he had uncontrollable urges and needed help.

Prior Criminal History: (Note any history of weapons, serious or violent felonies and any other relevant criminal information):

[X] Criminal History Attached (Dated no more than 30 days prior to due date of DRR)

01/12/18-PC 289(A)(1)(A): SEXUAL PENETRATION W/FORCE/ETC, PC 220(A)(1): ASSAULT:W/INTENT TO RAPE (6 YEARS PRISON)

Special Conditions of Parole: [X] CDCR Form 1515- Addendum Attached (* If necessary.)

[ ] None [ ] Anti-Narcotic Testing [ ] Drug Treatment [X] No Alcohol [ ] Attend POC [X] * Other

Parole Violations: (Note any parole violations, arrests, pending investigations and/or dispositions incurred during this period of review)

2025-03-04 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Verbal Reprimand)
2025-06-26 FAILURE TO ATTEND SEX OFFENDER TREATMENT. COP (Referral to PACT Program, Verbal Reprimand)
2025-07-15 FAILURE TO CHARGE GPS TWICE PER DAY EVERY 12 HOURS FOR 1 FULL HOUR OF CHARGING COP (Verbal Reprimand)
2025-08-18 FAILURE TO PROPERLY CHARGE GPS DEVICE COP (Referral to PACT Program, Verbal Reprimand)

Gang Activity Or Affiliation: (Note any past or present involvement in any prison, criminal, or street gang)

[X] None Validated: [ ] Member [ ] Associate [ ] Affiliate [ ] Dropout [ ] Active [ ] Inactive

Gang:

Current or past activity:

Mental Health Factors (Note mental health status of the parolee and his or her compliance with any mental health treatment):

[ ] None [ ] Voluntary [X] CCCMS [ ] EOP [ ] MDO

If CCCMS/EOP/MDO: [X] Compliant [ ] Non - Compliant

[X] BHR Report Attached (Dated no more than 45 days prior to due date of DRR)

Restitution (Note any fine and/or restitution balance at the time of review, and any effort to satisfy the fine and/or restitution balance):

[X] None [ ] Satisfied [ ] Not Satisfied Amount remitted to date: $ 0 Outstanding balance: $ 0

Employment (Note any employment, educational or vocational training):

Employment [X] None [ ] Employed [ ] Full Time [ ] Part Time

Student: [X] None [ ] Student [ ] Full Time [ ] Part Time

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Employer Name (If applicable):

Program Name (If applicable):

Position:

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION II PAROLEE DYNAMIC PROFILE

CATEGORY: SA CSRA: 2

Objective 1: The parolee has maintained residence stability in a positive living environment.

1=Has been in the same pro-social living situation for eight months or longer; or less than eight months, but at least six months, when the most recent move was to improve overall living conditions, and will continue to be available to the parolee.

Objective 2: The parolee's time has been structured around pro-social activities geared towards self-reliance.

3=Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.

Objective 3: The parolee has been compliant with his or her general and special conditions of parole.

3=The parolee has not met the rating standard for #1 or #2 above.

Objective 4: The parolee was referred and participated in programming for his or her top three criminogenic needs.

3=Failed to attend, participate, or complete.

Objective 5: The parolee has affiliated himself or herself with other pro-social individuals.

2=Parolee is seeking to terminate anti-social relationships, but still maintains some anti-social relationships.

Objective 6: Parolee has been referred to and participated in required sex offender treatment.

2=Attended and partially participated in sex offender treatment.

Parolee Dynamic Profile Recommendation: **Retain On Parole**

Aggravating Factor(s) to Consider:

Supervised Person Brendan Newanforbi is unemployed, incurred multiple parole violations during this review period, and has not completed sex offender treatment.

Mitigating Factor(s) to Consider:

Supervised Person Brendan Newanforbi has stable residence with his family.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

SECTION III RECOMMENDATION

Parole Agent Recommendation:

☐ Retain on Parole ☒ Discharge Denied/No Action

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Agent Comments / Recommendation:

Objective 1: Residence - Newanforbi currently has stable residence with his family in Stockton.

Objective 2: Employment - Newanforbi is currently unemployed.

Objective 3: General/Special Conditions - Newanforbi has incurred multiple parole violations during this review period.

Objective 4: Addressed Criminogenic Needs - Newanforbi's Criminogenic Needs for Substance Abuse rated Probable and Unlikely for all other categories.

Objective 5: Pro-Social - Newanforbi does not appear to have a large social circle.

Objective 6: Sex Offender - Newanforbi is not currently titrated and is not in the maintenance phase of his treatment with HOPE.

Supervised Person Brendan Newanforbi is a 29-year-old first termer committed to the California Department of Corrections and Rehabiliation for Penal Code 289(a)(1)(A) Penetration w/Force/Violence/Fear of Immediate Bodily Injury for 6 years in state prison. Newanforbi appears to have stable residence with his family in Stockton, CA. Newanforbi is currently unemployed and not attending school. Newanforbi has incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System. Newanforbi is currently attending sex offender treatment and has not completed treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Newanforbi is not eligible for EDC at this time due to having a 10-year parole term. Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision. Continued supervision is both warranted and recommended at this time. Recommend discharge be denied at this time.

Parole Agent (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
LONG MOUA	**LONG MOUA**	**7472**	**11-14-2025**

Unit Supervisor Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer to BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

☒ Refer to Parole Administrator

Unit Supervisor Comments/ /Decision /Recommendation:

The subject should be commended for maintaining compliance with parole supervision. The subject is unemployed, and the subject lives with his family in Stockton. The subject has no restitution obligations and, the subject has had five parole violations this period. Subject's Sex Offender Treatment Progress (HOPE): 10/15/2024 Stable 6/LSCMI 5. Level 2 below average Risk. Missed 6 sessions this Parole Period. Core Phase of treatment and working in Block 1 Module 4/7. Subject has presented homework on Victim Empathy. Does take full responsibility of offense. Subject has a relapse prevention plan to assist in his alcohol and marijuana use. Current focus on problem solving and relationship stability focusing on healthy relationships. Not eligible for titration at this time. Currently scheduled for 2 groups a week and 1 monthly individual. HOPE SOT recommends continued treatment. Based on Sex Offender Management Program Earned Discharge Criteria, Policy 19-03 (Amended), Subject is not eligible for EDC at this time due to having a 10-year parole term. Eagan has only completed approximately 4 years of the required 6.5 years of supervision. I concur with the Parolee Dynamic Profile and AOR's recommendation "Retain on Parole". Continued DAPO supervision is warranted and recommended.

Unit Supervisor (Printed Name):	Electronically Signed by:	Badge #:	Date Signed:
GARY NOGUCHI	**GARY NOGUCHI**	**7284**	**11-19-2025**

Parole Administrator Actions:

☒ Review ☒ Decision ☐ Retain On Parole ☒ Discharge Denied/No Action ☐ Refer To BPH

☐ Discharge Controlling Offense Approved ☐ Discharge Non-Controlling Offense Approved

Parole Administrator Comments / Decision/ Recommendation:

Concur with the Unit Supervisor, continued parole supervision is warranted and recommended at this time.

STATE OF CALIFORNIA
DISCHARGE REVIEW REPORT
CDCR 1502-DR (Rev 01/22)

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

DISCHARGE REVIEW REPORT

CDC Number:	Print Name (Print Last, First, MI):	Region:	Parole Unit:
BF3571	**NEWANFORBI, BRENDAN, NGEHSI**	**N**	**STOCKTON 2 GPS**

Parole Administrator (Print Name):	Electronically Signed by:	Badge #:	Date Signed:
KEELY DODD	**KEELY DODD**	**6462**	**11-19-2025**

Parolee Provided Copy (Date)

☐ Mailed By (Initials):

☐ Delivered By (Initials):

AGENT OF RECORD CONTACT INFORMATION AS OF 11/19/2025

AGENT NAME: ROJO, JOSEELYN

AGENT CONTACT: JOSEELYN.ROJO@CDCR.CA.GOV, (510) 871-7372 (Cell)

PAROLE UNIT: STOCKTON 2 GPS, 612 CARLTON AVENUE, STOCKTON, CA, 95203, (209) 948-7652

EXHIBIT B

Janice M. Bellucci, SBN 108911
LAW OFFICE OF JANICE M. BELLUCCI
2110 K Street
Sacramento, CA 95816
Tel: (805) 896-7854
Fax: (916) 617-2692
jmbellucci@aol.com

Attorney for Petitioners

Electronically FILED by
Superior Court of California,
County of Los Angeles
7/10/2023 9:21 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By N. Alvarez, Deputy Clerk

SUPERIOR COURT FOR THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC., a California non-profit corporation; CHRISTOPHER SANDAHL, an individual; JOSHUA MORALES, an individual; ALEXANDER FLORES, an individual; JOHN DOE #1, an individual; and JOHN DOE #2, an individual, Petitioners, vs. JEFF MACOMBER, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation, Respondent.	Case No.: 23STCP02378 **PETITION FOR WRIT OF MANDATE AND COMPLAINT FOR DECLARATORY RELIEF**

INTRODUCTION

1. This action challenges certain regulations, policies, and practices of the California Department of Corrections and Rehabilitation, Division of Adult Parole Operations ("**CDCR**"), regarding its supervision of parolees who are required to register as a sex offender pursuant to Penal Code section 290, *et seq*. ("**Registrants**"). As pleaded more fully below, CDCR's regulations, policies, and practices are inconsistent with and in conflict with state law governing the supervision

of Registrants on parole. Specifically, CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the "Containment Model" of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes (hereinafter, "**Section 3008(d)**").

2. Effective July 1, 2012, Section 3008(d) requires each Registrant on parole to "successfully complete **a** sex offender management program . . . as a condition of parole." (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) This management program includes two main components: (1) a psychological counseling and treatment program, and (2) periodic polygraph examinations to verify compliance with parole conditions and other matters incident to supervision or treatment. (*Id.* § 3008, subd. (d)(3); § 9003.)

3. Critically, the Legislature did not intend a Registrant's participation in either component of the management program to be indefinite. Nor did the Legislature intend a Registrant's participation in the management program to be for the entire length of parole in all cases. To the contrary, the Legislature declared that "the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to "complete," and thereby terminate their participation in, the management program as early as one year after placement on parole.

4. Yet, as pleaded below, CDCR has defied this statutory mandate by requiring all Registrants to remain in a management program for the entire duration of their parole term. In many cases, Registrants are retained in the management program long after completing all requirements of the treatment curriculum, and long after the Registrant's rehabilitative progress and demonstrably low risk of re-offense render treatment unnecessary. In fact, paradoxically, some Registrants who are eligible for early discharge from parole are denied early discharge due to their participation in a management program that CDCR will not let them terminate prior to discharge from parole.

5. By refusing to allow Registrants to complete and terminate their participation in the management program prior to discharge from parole, CDCR has vitiated the discretion that Section

3008(d) requires CDCR to exercise concerning each individual Registrant In so doing, CDCR is contradicting the clear language of Section 3008(d), and thus unlawfully impairing the scope of, Section 3008(d) and the Containment Model it codifies.

6. For these and the other reasons pleaded below, Petitioners respectfully seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole. Petitioner also seeks a judgment declaring that Section 3008(d) requires CDCR to evaluate individual parolees on a case-by-case basis for eligibility to terminate their sex offender management program while on parole.

JURISDICTION AND VENUE

7. As a court of unlimited jurisdiction, the Los Angeles County Superior Court has jurisdiction over this action for mandamus, declaratory, and injunctive relief pursuant to California Code of Civil Procedure sections 1084, *et seq*. and 1060, as well as California Government Code section 11350(a).

8. Venue is proper within the Los Angeles County Superior Court pursuant to California Code of Civil Procedure section 395.

PARTIES

9. Petitioner realleges and incorporates herein, as though fully set forth, all and inclusively, paragraphs 1 through 8.

10. Petitioner Alliance for Constitutional Sex Offense Laws, Inc. ("**Alliance**") is a non-profit corporation incorporated and headquartered in Los Angeles County, California. Alliance is dedicated to protecting the Constitution by restoring the civil rights of more than 100,000 Registrants in the State of California through advocacy, education, and litigation on behalf of them and their families. Alliance is beneficially interested in the outcome of these proceedings, as well as in CDCR's performance of its legal duties, and therefore seeks by this Petition to procure the enforcement of a public duty on a question of public right. Additionally, Alliance's membership includes individuals, including the Individual Petitioners herein, who are currently serving terms of parole in California and who are required to participate in a sex offender management program pursuant to Penal Code section 3008(d). Alliance is therefore an "interested person" for the

purposes of California Government Code section 11350(a), and has standing to seek mandamus relief under the doctrine of public interest standing. (*E.g.*, *Friends of Ocean Dunes, Inc. v. San Luis Obispo County Air Pollution Control Dist.* (2015) 235 Cal. App. 4th 957, 960, 962 [affirming trial court's ruling that a "California nonprofit corporation and voluntary association" had standing to challenge agency action that affected individuals that petitioner purported to speak for]; *Weiss v. City of Los Angeles* (2013) 2 Cal. App. 5th 194, 205-06 [same].)

11. Petitioner Christopher Sandahl is an individual residing in San Bernardino County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner Sandahl is currently required to participate in a sex offender management program pursuant to Section 3008(d) in San Bernardino County.

12. Petitioner Joshua Morales is an individual residing in Imperial County, California, who is currently serving a 5-year term of parole supervised by CDCR. Petitioner Morales is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Riverside County.

13. Petitioner Alexander Flores is an individual residing in San Diego County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner Flores is currently required to participate in a sex offender management program pursuant to Section 3008(d) in San Diego County.

14. Petitioner John Doe #1 is an individual residing in Los Angeles County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner John Doe #1 is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Los Angeles County.

15. Petitioner John Doe #2 is an individual residing in Ventura County, California, who is currently serving a 10-year term of parole supervised by CDCR. Petitioner John Doe #2 is currently required to participate in a sex offender management program pursuant to Section 3008(d) in Ventura County.

16. Petitioners Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe #1, and John Doe #2 shall be referred to herein collectively as the "Individual Petitioners."

17. The Individual Petitioners in this action are "interested persons" for the purposes of California Government Code section 11350(a), and have standing to seek mandamus relief and declaratory relief. (*Rialto Citizens v. City of Rialto* (2012) 208 Cal. App. 4th 899, 912-914.)

18. Respondent Jeff Macomber ("**Macomber**") is the Secretary of CDCR. Petitioners are informed and believe and thereon allege that Secretary Macomber is responsible for drafting, issuing, and enforcing the Regulations that are the subject of this Petition, with ultimate responsibility for ensuring CDCR's compliance with its legal duties. Secretary Macomber is sued in his official capacity.

FACTUAL ALLEGATIONS

19. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 18.

Chelsea's Law and Development of the Containment Model

20. Since July 1, 2012, Registrants on parole are supervised pursuant to the Containment Model, which is codified in Section 3008(d) and related statutes. The Containment Model is the product of reforms enacted through the Chelsea King Child Predator Prevention Act of 2010, known as "Chelsea's Law." (Stats. 2010, ch. 219, A.B. 1844 (2009-2010 Reg. Sess. See also *People v. Douglas M.* (2013) 220 Cal. App. 4th 1068, 1076.)

21. The Containment Model sought to establish "a unified strategy" for the supervision of Registrants on post-conviction supervision statewide, rather than the "patchwork of management strategies" that had previously existed in California's 58 counties. (*People v. Garcia* (2017) 2 Cal. 5th 792, 800-01.) The Containment Model incorporates uniform "best practice for community supervision of sex offenders" pursuant to recommendations from the California Sex Offender Management Board (CASOMB), the entity charged with setting policy and practice for the supervision of Registrants in California. (*Ibid*. See also Cal. Penal Code § 9002.)

22. As the California Supreme Court has explained, "the Containment Model adopted by the Legislature depends on three interrelated elements: **[1]** supervision and monitoring of the sex offender while on [parole]; **[2]** sex offender-specific assessment and treatment; and **[3]** the use of static, dynamic, and future assessments of the risk of reoffending, including the State Authorized

Risk Assessment Tool for Sex Offenders (SARATSO)." (*Garcia*, *supra*, 2 Cal. 5th at pp. 800-01.) Thus, the Containment Model requires cooperation by three actors: a supervising agent, a treatment provider, and a polygraph examiner. "A major premise of the model is that the mental health professional, [supervising] officer, and polygraph examiner will work together closely to assess the offender's compliance with, and participation in, the treatment program as well as the offender's risk of reoffending." (*Id*. at p. 801.)[1]

23. This Petition concerns the second element of the Containment Model, that is, the program for "sex-offender specific assessment and treatment," which includes both a therapeutic treatment curriculum and periodic polygraph examinations. (Cal. Penal Code § 3008, subd. (d)(1)-(d)(2).) Because of its breadth and detail, the Legislature provided CASOMB and CDCR approximately two years to develop the treatment component of the Containment Model. Section 23 of Chelsea's Law, now codified in Penal Code section 9003, directed CASOMB to develop standards for the program, as well as a method for certifying the individual third-party treatment programs and treatment providers that would implement the program throughout the state. Penal Code section 9003 states as follows:

> (a) On or before July 1, 2011, the board shall develop and update standards for certification of sex offender management professionals. All those professionals who provide sex offender management programs and risk assessments, pursuant to Section 290.09, shall be certified by the board according to these standards. The standards shall be published on the board's Internet Web site. Professionals may apply to the board for certification on or after August 1, 2011.
>
> . . . .
>
> (b) On or before July 1, 2011, the board shall develop and update standards for certification of sex offender management programs, which shall include treatment, as specified, and dynamic and future violence risk assessments pursuant to Section 290.09. The standards shall be published on the board's Internet Web site. All those programs shall include polygraph examinations by a certified polygraph examiner, which shall be conducted as needed during the period that the offender is in the sex offender management program. Only certified sex offender management professionals whose programs meet the standards set by the board are eligible to

[1] *People v. Garcia* and other opinions addressing the Containment Model discuss its parameters in the context of probation supervision, rather than parole. Their reasoning applies to parole, however, because the Containment Model governs the supervision of Registrants in both contexts, and the statutes implementing the Containment Model in both contexts are substantively identical. (*Compare* Penal Code § 3008, subd. (d) [parole] *with id*. § 1203.067, subd. (b) [probation].)

provide sex offender management programs pursuant to Section 290.09.

(Stats. 2010, c. 219 (A.B.1844), § 23, eff. Sept. 9, 2010, codified at Penal Code § 9003.)

24. Related, Penal Code section 290.09, enacted pursuant to Chelsea's Law, further states:

> The sex offender management program shall meet the certification requirements developed by the California Sex Offender Management Board pursuant to Section 9003. Probation departments and the Department of Corrections and Rehabilitation shall not employ or contract with, and shall not allow a sex offender to employ or contract with, any individual or entity to provide sex offender evaluation or treatment services pursuant to this section unless the sex offender evaluation or treatment services to be provided by the individual or entity conforms with the standards developed pursuant to Section 9003.

(Stats. 2010, c. 219 (A.B.1844), § 13, eff. Sept. 9, 2010, codified at Penal Code § 290.09, subd. (a)(2).)

The Containment Model Requires Registrants on Supervision to Participate in a Management Program for At Least One Year, but Not the Entire Term of Supervision

25. The Containment Model took effect on July 1, 2012, and all Registrants on parole became subject to it on that date. State law now provides that "Every sex offender required to register pursuant to Sections 290 to 290.023, inclusive, shall, while on parole . . ., participate in an approved sex offender management program, pursuant to Section [] 3008." (Penal Code § 290.09.) Section 3008(d) expressly requires participation in a sex offender management program as a condition of parole, and specifies the length of participation in the program, as follows:

> On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . .
>
> > (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. **The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.** Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.

(Penal Code § 3008, subd. (d)(1)-(d)(2), emphasis added.)

26. Therefore, as codified in Section 3008(d), the duration of the management program is a minimum of one year, and up to the entire period of parole, if warranted. The management

program, however, is not required in all cases to extend for the entire period of parole. Indeed, the Containment Model requires CDCR and individual treatment providers to exercise discretion in determining the length of time an individual Registrant remains in a management program. In other words, Section 3008(d) requires that individual Registrants have an opportunity to "complete" the management program, and thereupon be terminated from it, prior to their discharge from parole.

The Containment Model in Practice

27. Upon information and belief, the management program called for by the Containment Model involves successive phases that require progressively less participation over time. When first released on parole, a Registrant is assessed using SARATSO-approved risk assessment instruments and assigned a particular treatment plan by the treatment provider, in consultation with parole authorities.

28. Upon information and belief, a Registrant's initial involvement in the management program is time intensive. A typical Registrant newly released on parole must participate in a weekly group therapy session in which curriculum is discussed and completed, plus separate individual counseling sessions that do not involve curriculum. Upon information and belief, the Registrant also participates in polygraph examinations to verify compliance with the treatment program as well as other conditions of parole. Upon information and belief, the polygraph examinations are administered under the supervision of the treatment provider.

29. Upon information and belief, as a Registrant progresses through and completes the curriculum-based group treatment phase of the management program, and otherwise achieves treatment goals, a Registrant is eligible to transition to phases of treatment that require less frequent group and/or individual sessions. Upon information and belief, these latter phases are usually called "maintenance" or "after care," consistent with having completed the treatment curriculum and needing only "maintenance" of the progress achieved. Upon information and belief, in most if not all treatment programs, the post-curriculum "maintenance" or "after care" phases involve materially less frequent group and/or individual sessions than the earlier curriculum-based treatment phases. Maintenance and aftercare phases can be as infrequent as one quarterly individual meeting with a therapist.

30. Upon information and belief, both Registrants and public safety benefit when a Registrant timely completes the treatment curriculum and reduces his or her participation in the management program. For example, upon information and belief, maintaining a regular employment schedule while on parole can be difficult when the group and/or individual treatment sessions occur on weekdays during business hours. Individual Registrants are often compelled to miss work, or forego certain employment entirely, if their work schedules do not allow participation in the management program. In contrast, Registrants who progress through the program and whose attendance requirements are correspondingly reduced have additional time to pursue employment opportunities, education, or other positive goals correlated with rehabilitation.

CDCR Regulations, Policy, and Practice Do Not Allow Registrants to Complete and Discontinue the Management Program Prior to Discharge from Parole

31. As noted above, the Legislature did not intend the management program for Registrants to endure for the entire duration of parole in every case. To the contrary, Section 3008 expressly contemplates that the management program can be "completed" prior to discharge of parole, and that its duration can be as short as "one year."

32. The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. Section 3573 provides that:

> The Department shall conduct on-going supplemental risk assessments pursuant to sections 3573(d) and (e), which are used for designing treatment programs and determining supervision levels for sex offenders during their parole terms at the direction of the Director of CDCR or their designee. These assessments are not for use in determining whether an offender qualifies as a HRSO, but rather to determine the frequency of treatment and the level of supervision needed for monitoring the sex offender while in the community.

(15 C.C.R. § 3573, subd. (c).) Notably, no provision of Section 3573 or any other regulation allows for the "completion" of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates.

33. Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. Section 81022 of the Operations Manual states:

> Pursuant to PC Section 3008, CDCR must implement a sex offender parolee management and containment program developed in accordance with the standards established under PC Section 9003. SOMP is a comprehensive program consisting of enhanced supervision; sex offender parolee specific treatment; polygraph use; and victim advocacy, **and is intended for the management of all parolees required to register with law enforcement, pursuant to PC Section 290**.
>
> **All offenders under CDCR supervision convicted of a crime requiring registration under the Sex Offender Registration Act codified in PC Section 290 et seq., shall be supervised in accordance with the SOMP policy**. Parole agents assigned to a specialized sex offender parolee caseload shall receive SOMP training prior to the assignment of sex offender parolee cases.

(DAPO Operations Manual § 81022, emphasis added.)

34. Further, upon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to "complete" the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense.

CDCR Agents and Officials Testified in Court Proceedings that CDCR Retains All Registrants in a Sex Offender Management Program for the Duration of Parole

35. CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). In that litigation, the Registrant had been convicted in San Mateo County and, in 2017, was released on parole in Alameda County. (Exh. A, at p. 2.) At that time, the parole authorities in Alameda County contracted with the "Shaping Success" company as their contract treatment provider. (Exh. A, at p. 3.) As required by Section 3008(d), the Registrant attended and participated in weekly curriculum-based group sessions lasting 1.5 hours for nearly three years

between March 2018 and January 2021. (Exh. A, at p. 3.) In addition to the weekly therapeutic sessions, the Shaping Success program curriculum required extensive written work product, including a Relapse Prevention Plan, which the Registrant submitted. The Registrant also continued to undergo polygraph examinations. (Exh. A, at p. 3.)

36. In January 2021, the Registrant's treatment provider, Shaping Success, confirmed his completion of the curriculum and approved his transition to the maintenance phase of the program. (Exh. A, at p. 3.) The maintenance phase required the Registrant to appear only for individual counseling once per month, and eliminated Petitioner's weekly group sessions. (Exh. A, at p. 3.)

37. The Registrant took advantage of the reduced attendance requirement to achieve professional certifications, complete a union apprenticeship program, and to undertake the additional hours needed to earn a promotion at his job. The Registrant could not have achieved these goals with the initial schedule required during his first three years in the management program.

38. Shortly after the Registrant's transition to maintenance, however, in 2021, CDCR informed him that Shaping Success had been replaced with a new contract treatment provider, the HOPE Program. (Exh. A, at p. 4.) The Registrant was told that he was required to begin the treatment curriculum anew with the HOPE Program because the HOPE Program was unwilling to rely upon the prior treatment provider's work, despite Shaping Success being CASOMB-certified, and despite his completion of the program being confirmed by both his prior treatment provider and his parole agent. (See Exh. A, at p. 10 & n.1.)

39. The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:

> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior tot termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].)

40. The San Mateo County Superior Court ruled that CDCR's refusal to exercise its discretion in connection with the Registrant's length of participation in a sex offender management program "vitiates the Legislature's directive" set forth in Section 3008, as follows:

> Penal Code§ 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. . . .
>
> Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

(Exh. A, at pp. 10:6-11:7.)

41. Accordingly, the San Mateo County Superior Court exercised its discretion under Section 3008 and terminated the Registrant's participation in the sex offender management program,

including the polygraph examinations, for the following reasons:

> The Legislature's guidance on the purpose of parole is as follows:
>
> > [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(l).
>
> In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. . . . His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. . . . His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge.

(Exh. A, at pp. 11:12-12:12.)

The Individual Petitioners in this Action

42. Upon information and belief, CDCR continues to "vitiate" the Legislature's directive in Section 3008(d) by retaining all Registrants on parole in California in a management program for the duration of parole. Upon information and belief, as of June 7, 2023, there were 6,821 Registrants on parole in California, and who are therefore subject to the management program required by Section 3008(d).[2]

43. The Individual Petitioners in this action reside in five different counties, and fairly represent parolees throughout the state. Some of the Individual Petitioners have been retained in the initial phases of treatment indefinitely, subject to repetition of the same treatment curriculum, regardless of their progress and demonstrably low risk of re-offense. Other Individual Petitioners have completed the curriculum-based treatment phases and have transitioned to "maintenance" phases of treatment, where they have maintained minimal contact with the treatment provider for substantial periods. Yet, they are retained in the management program indefinitely rather than evaluated for termination

[2] Figure disclosed by a CDCR representative during a public meeting of the California Sex Offender Management Board, June 15, 2023.

from the program, as Section 3008(d) contemplates.

Petitioner Christopher Sandahl

44. Petitioner Christopher Sandahl is currently serving a 10-year term of parole supervised by CDCR in San Bernardino County. Petitioner Sandahl was released from custody in Riverside County on or about October 5, 2014, whereupon he began a sex offender management program in Riverside County with Sharper Future, a contract treatment provider. Shortly thereafter, Petitioner Sandahl enrolled in a vocational training program in San Bernardino and transferred his parole supervision to that county. After his transfer, Petitioner Sandahl immediately resumed the management program with a treatment provider called Open Door in the City of Colton in San Bernardino County. Open Door required Petitioner Sandahl to attend weekly curriculum-based group meetings, as well as individual counseling sessions at different intervals, along with periodic polygraph examinations. Open Door has required Petitioner Sandahl to maintain this same schedule without adjustment for the past eight years. Petitioner Sandahl has repeated the full treatment curriculum with Open Door at least three times, but has never been approved for transition to a maintenance phase of treatment, or any correspondingly reduced treatment schedule. Petitioner Sandahl has missed only two group sessions during those eight years, each time with the approval of his parole agent.

Petitioner Joshua Morales

45. Petitioner Joshua Morales is currently serving a 5-year term of parole supervised by CDCR in Imperial County. Petitioner Morales's term of parole began on September 24, 2018, when he was released to Riverside County. In or about October 2018, Petitioner Morales began a management program with the treatment provider Sharper Future in Riverside County, which included weekly curriculum-based group treatment sessions, monthly individual sessions, and periodic polygraph examinations.

46. In or about January 2020, a representative from Sharper Future told Petitioner Morales and all members of his treatment group that Registrants can earn transition to the maintenance phase of the program by completing the treatment curriculum. The maintenance phase was said to require, at the start, group sessions twice per month (plus individual sessions and polygraph exams), but would

ultimately require only one monthly group session (plus individual sessions and polygraph exams). Petitioner Morales diligently pursued completion of the treatment curriculum. However, despite his repeated requests, Petitioner Morales was never transitioned to the maintenance phase of the program that year (2020).

47. In or about January 2021, Petitioner Morales moved to Imperial County, where he continued to participate in the Sharper Future program at the same intervals required when he was newly released on parole (*i.e.*, weekly group sessions, monthly individual sessions, and period polygraph examinations). Petitioner Morales's new parole agent in Imperial County inquired why he had not yet transitioned to maintenance. The new parole agent suggested that Petitioner Morales enroll in a different management program in San Diego County, the HOPE Program, based upon the parole agent's expectation that the HOPE Program would facilitate Petitioner Morales's transition to maintenance more quickly. Petitioner Morales accepted this offer and enrolled with the HOPE Program in Chula Vista in early 2021.

48. The HOPE Program in Chula Vista required Petitioner Morales to participate in weekly curriculum-based group treatment sessions (along with monthly individual sessions and polygraph exams) for one year before being transitioned to the maintenance phase. Petitioner Morales commenced this schedule. However, a few months later, Petitioner Morales suffered a serious car accident while en route to a polygraph examination in Chula Vista, 2.5 hours from his residence in Imperial County. Reluctant to continue making that drive, Petitioner Morales requested permission to resume the Sharper Future program in Riverside County, which was granted. After that transfer, Petitioner Morales was required to resume participation in the Sharper Future program at the same interval as when he first joined that program.

49. Some months later, in August 2022, Sharper Future informed Petitioner Morales that he was approved for transition to the maintenance phase of the program. However, despite the above-referenced representations by Sharper Future, the maintenance phase requires precisely the same schedule that newly enrolled Registrants must attend (weekly curriculum-based group treatment session, plus monthly individual sessions and periodic polygraph examinations). In other words, Petitioner Morales's transition to maintenance was a nominal transition only, with no substantive

impact on his level of participation or program requirements.

50. In September 2022, Petitioner Morale's parole agent and unit supervisor recommended his early discharge from parole. This recommendation was based upon Petitioner Morales having "completed sex offender treatment" by virtue of "being in the maintenance phase of Sex Offender Treatment," as well as Petitioner Morales's STATIC-99R risk assessment score of "zero." Yet, on December 20, 2022, the Board of Parole Hearings denied Petitioner Morales early discharge from parole based in part upon his "continued Sex Offender Treatment under the Maintenance Phase." In other words, CDCR denied Petitioner Morales early discharge from parole based because of his continued participation in the sex offender management program that CDCR will not let him complete or terminate prior to discharge.

Petitioner Alexander Flores

51. Petitioner Alexander Flores is currently serving a 10-year term of parole supervised by CDCR in San Diego County. Petitioner Flores was released and began his term of parole in March 2019. Upon release, in or about March 2019, Petitioner Flores began a management program with the HOPE Program, which required curriculum-based treatment group sessions once per week, plus monthly individual sessions and periodic polygraph examinations. In January 2022, Petitioner Flores transitioned to a curriculum-based "maintenance group" with sessions twice per month, along with monthly individual sessions and periodic polygraph examinations, which has remained Petitioner Flores's schedule between January 2022 and the present.

52. The curriculum in the maintenance group sessions that Mr. Flores attends is similar or identical to the curriculum in the previous treatment group sessions. Treatment providers with the HOPE Program have told Petitioner Flores that Registrants are eligible to transition to monthly group sessions, but he has not been permitted to transition, nor is he aware of any other Registrant who has done so. Treatment providers with the HOPE Program have also told Petitioner Flores that Registrants are never terminated from group or individual treatment sessions, or polygraph examinations, while they are on parole.

53. Notably, the HOPE Program has confirmed, in writing, that Petitioner Flores occupies "low risk" and "below average risk" categories on its assessment instruments, based upon factors that

include a SARATSO risk assessment score, his participation in treatment, continued employment, and other dynamic factors indicating stability and trustworthiness.

Petitioner John Doe #1

54. Petitioner John Doe #1 is currently serving a 10-year term of parole supervised by CDCR in Los Angeles County. Upon his release in 2019, Petitioner John Doe #1 began a sex offender management program with Sharper Future in Los Angeles County, and was required to attend weekly curriculum-based group sessions, as well as monthly individual treatment sessions and periodic polygraph examinations. Petitioner John Doe #1 finished the curriculum phase of the management program in November 2021 and was told of his eligibility to "step down" to the maintenance phase. Despite these statements, Petitioner John Doe #1 was not transitioned to the maintenance phase until April 2022. Currently, Petitioner John Doe #1 attends no group meetings, and attends individual sessions once every three months, along with periodic polygraph examinations.

Petitioner John Doe #2

55. Petitioner John Doe #2 is currently serving a 10-year term of parole supervised by CDCR in Ventura County. Petitioner John Doe #2 was released on parole in 2017, whereupon Petitioner John Doe #2 attended weekly curriculum-based group treatment sessions, plus periodic individual sessions and polygraph examinations. In mid-2020, Petitioner John Doe #2 completed the treatment curriculum and transitioned to an "aftercare" phase, which requires monthly group sessions, and no individual sessions, and periodic polygraph examinations. Petitioner John Doe #2 has maintained this schedule since mid-2022. Petitioner John Doe #2's parole agent has told him that he occupies the lowest possible supervision level per CDCR's regulations.

FIRST CLAIM FOR RELIEF

(Mandamus – CAL. CIV. PROC. CODE § 1085)

56. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 53.

57. Respondent, as Secretary of CDCR, along with each relevant official, employee, and agent of CDCR, has failed to comply, and is failing to comply, with their duties under the laws of the

State of California, including Penal Code section 3008(d) and the California Administrative Procedure Act, Government Code section 11340.

58. Government Code section 11342.2 provides that

> Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute.

(Gov't Code § 11342.2.) "Regulations that alter or amend the statute or enlarge or impair its scope are void." (*Envtl. Protection Info. Ctr. v. Dept. of Forestry and Fire Protection* (1996) 43 Cal. App. 4th 1011, 1022.) CDCR abuses its discretion when its regulations purport to implement a statute using criteria other than those intended by the Legislature. (*Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 971.)

59. Under the standard imposed by Government Code section 11342.2, CDCR's Regulations at Code of Regulations, Title 15, section 3573 ("**Regulations**"), fail this standard and are therefore unlawful for the following reasons:

a. First, the Regulations require that all Registrants participate in a sex offender management program (consisting of mental health treatment sessions and polygraph examinations) for the entire period of parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

b. Second, the Regulations contain no mechanism whereby Registrants are evaluated on a case-by-case basis for termination from the sex offender management program prior to discharge from parole, or otherwise permitted to "complete a sex offender management program" prior to discharge from parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

c. Third, the Regulations are not a lawful exercise of discretion because they require Registrants to participate in a sex offender management program for the entire duration of parole. CDCR has therefore failed and is failing to exercise the discretion that Section 3008(d) requires CDCR to exercise regarding each individual Registrant. Such a failure to exercise discretion is

itself an abuse of discretion. (*E.g.*, *Grimes v. State Dep't of Social Services* (1999) 70 Cal. App. 4th 1065, 1073 ["Courts have interpreted these established rules of judicial review of administrative action to find an abuse of discretion where . . . there is a failure to exercise discretion . . . ."].)

60. Separately, upon information and belief, and as representatives from CDCR have testified under oath, CDCR has implement and continues to implement a policy requiring all Registrants supervised by CDCR on parole to participate in a sex offender management program for the entire duration of parole, and does not allow individual Registrants to complete or be terminated from that program prior to discharge of parole, which is not consistent with, and which impairs the scope of, Section 3008(d).

61. The injuries that Petitioners and the public are suffering as a result of the actions of Respondent and CDCR, are severe, irreparable, and ongoing, and there are no plain, adequate, complete, speedy, or required alternative remedies available to redress the violations of law committed by Respondent and CDCR in this action, nor are there any available, non-futile, or required administrative remedies available to redress the violations of law committed by Respondent and CDCR. Damages are not adequate to protect Petitioners from the continuing effects of Respondent and CDCR's violations of the law and from Respondent and CDCR's failure to carry out their duties under the law. Immediate mandamus relief is necessary to halt and prevent further occurrence of these ongoing unlawful acts and the infliction of irreparable harm to Petitioners and the public.

SECOND CLAIM FOR RELIEF

(Declaratory Judgment – CAL. CIV. PROC. CODE § 1060; CAL. GOV'T CODE § 11350(a))

62. Petitioners reallege and incorporate herein, as though fully set forth, each and every, all and inclusively, paragraphs 1 through 59.

63. The California Administrative Procedure Act declares that, to be effective, regulations "shall be within the scope of authority conferred and in accordance with standards prescribed by other provisions of law," and that "no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute." (Cal. Gov't Code §§ 11342.1, 11342.2.)

64. California Government Code section 11350(a) states: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. The right to judicial determination shall not be affected by the failure either to petition or to seek reconsideration of a petition filed pursuant to Section 11340.7 before the agency promulgating the regulation or order of repeal. The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter, or, in the case of an emergency regulation or order of repeal, upon the ground that the facts recited in the finding of emergency prepared pursuant to subdivision (b) of Section 11346.1 do not constitute an emergency within the provisions of Section 11346.1."

65. Petitioners are "interested persons" within the meaning of California Government Code section 11350(a) and therefore have standing to bring this action for declaratory relief.

66. Petitioners seek a declaration that CDCR's Regulations at Code of Regulations, Title 15, section 3573, are void, invalid, and otherwise unlawful on the grounds stated herein.

67. Petitioners seek a declaration that Section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants on parole in a sex offender management program for the entire term of parole.

68. Petitioners seek a declaration that CDCR is required to exercise discretion regarding each individual Registrant's duration of participation in a sex offender management program pursuant to Section 3008(d), and that such exercise of discretion must include the possibility of completion of and termination from that program prior to discharge from parole, after one year in the program.

PRAYER FOR RELIEF

WHEREFORE, Petitioners pray for judgment against Respondent Jeff Macomber, as follows:

A. That the Court issue a peremptory writ of mandate directing Respondent and the California Department of Corrections and Rehabilitation ("**CDCR**") to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex

offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole.

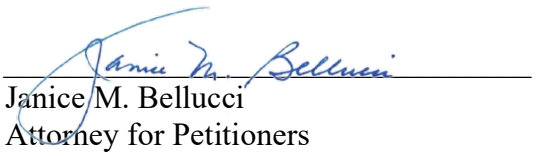
B. For a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole.

C. That Petitioners recover from Respondent all of Petitioners' reasonable attorney fees, costs, and expenses of this litigation pursuant to California Code of Civil Procedure section 1021.5 and other applicable law; and

D. For such other and further relief as the Court deems just and proper.

Dated: July 6, 2023

LAW OFFICE OF JANICE M. BELLUCCI

By: 

Janice M. Bellucci
Attorney for Petitioners

VERIFICATION

I, Janice M. Bellucci, have read this PETITION FOR WRIT OF MANDATE AND COMPLAINT FOR DECLARATORY RELIEF in the matter of *Alliance for Constitutional Sex Offense Laws, Inc., et al. v. Jeff Macomber*. I am the Executive Director of Petitioner Alliance for Constitutional Sex Offense Laws, Inc. and make this declaration on behalf of that entity. In addition, I am counsel of record for the individual Petitioners in this action. Pursuant to Code of Civil Procedure section 446, I make this verification on behalf of the individual Petitioners because they reside in Los Angeles, Ventura, San Bernardino, San Diego, and Imperial Counties, while my office is in the City of Sacramento. Unless otherwise noted, the facts alleged therein are within my personal knowledge and I know these facts to be true. As to the remainder of the Petition, I am informed, and do believe, that the matters therein are true, and on that ground allege that the matters stated therein are true.

Executed July 6, 2023 in Sacramento, California. I declare under the penalty of perjury under the laws of the State of California that the foregoing is true and correct.

By: _____
Janice M. Bellucci

EXHIBIT A

ENDORSED FILED
SAN MATEO COUNTY

MAR 2 0 2023

Clerk of the Superior Court
By VALERIE HRONIS
DEPUTY CLERK

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN MATEO

In re:	Case No. SC-080355A
	HC-3020
FREDERICK DWYER.	
On Habeas Corpus.	**ORDER**

FACTS AND ALLEGATIONS

On January 23, 2015, Petitioner pled no contest to one count of Penal Code section (PC §) 286(c)(2) (sodomy by force). He also admitted allegations pursuant to Penal Code section 1192.7(c)(4) and 667.5(c)(4) (admitting that the current offense was serious and violent). On March 10, 2015, the Court denied probation and sentenced Petitioner to the lower term of three years in the California Department of Corrections and Rehabilitation. As a condition of sentence, Petitioner was ordered to register pursuant to the terms of Penal Code § 290.

Petitioner was released on parole in 2017. Among other conditions, he was ordered as a special condition of parole to participate in a sex offender management program as required by Penal Code § 3008(d). In the present writ before the court, Petitioner challenges the continued imposition of the special condition of parole on two grounds: 1) that he has already successfully completed a sex offender management program as required, but is currently being ordered to complete a second program; and 2) he asks the court to exercise its discretion pursuant to Penal

Code § 3008(d) to limit the length of the sex offender management treatment program to a term less than the entire term of his parole.

Petitioner submitted his writ petition on June 22, 2021 in Alameda County Superior Court. The People, through the Attorney General, submitted an informal response requesting denial of the petition on August 20, 2021. Petitioner filed a reply on August 27, 2021. The Honorable Morris Jacobson ordered the writ petition transferred to San Mateo County Superior Court on October 22, 2021, finding that venue was more appropriate in the committing court. This Court issued an order to show cause on January 13, 2022. Respondent filed their return on April 14, 2022, and Petitioner filed a Traverse and Denial on May 11, 2022. This Court issued an order for evidentiary hearing on disputed facts on October 20, 2022. The hearing was continued and ultimately heard on March 9, 2023. Petitioner testified on his own behalf. Respondent presented the testimony of Dr. Cristina Loree, Gilberto Haro, and Daniel Stout. The parties stipulated to the admission of each of their marked exhibits. The Court has considered all filed written pleadings, all admitted exhibits, the testimony of each witness, and the arguments of counsel in rendering the following decision.

DISCUSSION

I. Factual Findings

The facts established at the evidentiary hearing in this matter are largely undisputed. Pursuant to the parties' written stipulation filed March 2, 2023, Petitioner was released on parole on May 30, 2017. He has suffered one parole violation to date in September 2019 for a physical altercation with his wife. The altercation did not result in the filing of a new criminal case, and Petitioner's parole violation resulted in a custodial sanction of six days. Petitioner has otherwise complied with his parole conditions, and has been recommended for early discharge from parole. The Board of Parole Hearings denied the recommended early discharge because Petitioner has not yet served the minimum term of parole required for his commitment offense.

Pursuant to a special condition of parole, Petitioner is required to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program.

The program will require you to agree and sign necessary documents and waivers as well as polygraph examinations, limited to questions about the success of the sex offender treatment program, the crime(s) for which you were convicted, compliance with conditions of parole, sexual history and related criminal behavior past, present, and/or future." (Exhibit 3H). At the time of Petitioner's release on parole, the Division of Adult Parole Operations in Petitioner's area of supervision contracted with a program called Shaping Success. Shaping Success is a California Sex Offender Management Board (CASOMB) approved sex offender management program. The evidence at the hearing established that the Shaping Success program consisted of a "treatment" phase and a "maintenance" phase. During the treatment phase, Petitioner testified that he was initially required to participate in weekly group meetings and individual monthly counseling sessions with Shaping Success. He participated in treatment with Shaping Success for three years. On January 12, 2021, the Shaping Success program issued a "Statement of Successful Treatment Completion" regarding Petitioner's treatment. (Exhibit 9H). The certificate stated, in relevant part on its face, that:

> [t]he term 'successful treatment completion' is defined as having 'demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan' at the time of release from treatment. … Treatment completion does not mean that the client has successfully completed the sex offender management program, or that the client will never reoffend. When active treatment ends, supervision and other elements of the Containment Model may continue. These elements may include, but are not limited to, monitoring, follow-up sessions, aftercare meetings, polygraph testing, risk assessments, and other services which may be required as part of a sex offender management program, i.e., CASOMB Sex Offender Treatment Provider Agency Certification Requirements.

At the completion of the "treatment" phase of Shaping Success, Petitioner was moved into the "maintenance" phase of the program. Petitioner testified that in the "maintenance" phase, he was no longer required to attend any group sessions and his individual sessions were reduced to once a month. He was also required to participate in annual polygraph examinations.

After Petitioner had completed the treatment phase of Shaping Success, the Division of Adult Parole Operations contracted with a new CASOMB provider for sex offender

management – the HOPE program. Petitioner was required to participate in treatment at the HOPE program beginning on March 5, 2021. (Exhibit 6H). Dr. Cristina Loree, Executive Director of Clinical Training and Development at the HOPE Program, testified that HOPE's sex offender management program consists of four phases. When participants first report to the program, the program administers static and dynamic risk assessment tools and obtains a full biopsychosocial history of the participant. Clients are referred to treatment based on their risk assessment scores. The first phase of the program is preparatory for treatment, consisting of seven modules. The second phase of the program, referred to as "core treatment", consists of twenty four modules. In the core treatment phase, sex offenders designated as "high risk" based on their risk assessment scores are required to attend groups twice weekly and once a month individually. "Low risk" offenders participate in groups once weekly and individual sessions once a month. The third phase of the program is "maintenance", consisting of twelve modules. In the maintenance phase, participants have group meetings no less frequently than every other week, and individual sessions no less than quarterly. Completion of all twelve modules is required to complete the maintenance phase, and group sessions are the primary method that the program uses to assess completion of the modules. Upon completion of maintenance, the fourth phase of the program is "aftercare". In aftercare, participants have no group sessions, individual meetings only as needed at the discretion of their clinicians, and twice yearly polygraph examinations. Dr. Loree characterized participation in "aftercare" as voluntary for those no longer on parole, but mandatory for those who have not yet discharged from parole based on the need to maintain a connection to treatment. Dr. Loree testified that she believes a continuous connection to treatment is required for all sex offender parolees based on Penal Code § 3008's provision that the duration of a sex offender management program can be up to the entire term of parole.

When HOPE became the sex offender management provider for Petitioner's region, they devised the following general process for participants who were in the maintenance phase of the Shaping Success program. The participants were required to complete the seven module treatment preparation phase, submit a non-deceptive polygraph examination, and undergo a

risk assessment. Upon completion of those three requirements, participants were then moved into the maintenance phase of the HOPE program. Dr. Loree was unable to describe exactly when Petitioner went through that screening process and was moved to maintenance. Petitioner testified that when he first began with HOPE he was required to attend groups twice weekly in addition to individual sessions for the first three months of his participation in the program. After that, Petitioner testified that he was moved to the maintenance phase of the HOPE program – he currently attends groups once every two weeks and individual sessions quarterly. Dr. Loree confirmed that this is the lowest level of treatment available in HOPE's maintenance phase. Dr. Loree testified that Petitioner has completed four of the twelve maintenance phase modules. His attendance has been "near perfect". His STATIC-99R score is 4, which is categorized as high risk. The STATIC-99R measures risk factors that generally do not change over time with the exception of age at last release from prison. HOPE has administered two dynamic risk assessments to Petitioner – the Stable-2007 and the LS/CMI. His most recent Stable-2007 score is 2, and his most recent LS/CMI score is 6. Both are categorized as low risk. (Exhibit 7). Dr. Loree testified that Petitioner's overall risk assessment, taking both the STATIC-99R score and the dynamic risk assessment scores into account, is average risk – classified as an 8% likelihood of sexual recidivism within 5 years as compared to the overall population of individuals convicted of sexually motivated offenses.

Petitioner is married, has stable housing, and is presently employed. He is the sole wage earner in his household. He has reached journeyman level in his carpenter's union. He is enrolled in community college courses in pursuit of his Associate of Arts degree, with the goal of becoming a construction superintendent. Since the 2019 parole violation, his parole performance has been positive. (Exhibit 5H). He asserts that the increased frequency of group meetings since his transition from the Shaping Success program to the HOPE program is interfering with his ability to meet his employment obligations.

II. Legal Discussion

A. Failure to Exhaust Remedies

The Attorney General argues that this Court should deny the writ because Petitioner has failed to exhaust his administrative remedies before seeking writ relief, citing In re Muszalski (1975) 52 Cal.App.3d 500, 508. While it is true that exhaustion is typically required before a writ of habeas corpus may be granted, there is an exception to the requirement of exhaustion where an aggrieved party "can positively state what the administrative agency's decision in his particular case would be." In re Thompson (1985) 172 Cal.App.3d 256, 262. Petitioner is not "required to pursue a futile remedy." In re Thompson, *supra*, at 263.

In the instant petition, Petitioner filed a grievance on June 11, 2021 prior to filing the instant writ petition. The grievance and response were admitted as Exhibits 7H and 8H. Petitioner's grievance sought to be "placed back on maintenance with the same frequency of contact that I had with Shaping Success provider." (Exhibit 7H.) On July 28, 2021, Petitioner's grievance was denied on the grounds that Penal Code § 3008(d)(2) and Petitioner's special condition of parole required him to participate in sex offender treatment "while under parole supervision", and that HOPE's program staff had stated that Petitioner would be moved to HOPE's maintenance phase with once per week group sessions and monthly individual sessions. (Exhibit 8H.) At the hearing, the Court heard the testimony of Gilberto Haro, presently responsible for overseeing the operations of five parole units within the East Bay where Petitioner is supervised. Mr. Haro participated in the review and denial of Petitioner's grievance. He supervises Petitioner's assigned parole agent. Mr. Haro testified unamibiguously that the treatment provider determined Petitioner's appropriate level of treatment and parole denied Petitioner's grievance in deference to that decision. Mr. Haro further testified that he understands Penal Code § 3008(d)(2) to require a sex offender parolee to participate in a sex offender management program for the entire term of parole.

The Attorney General further presented the testimony of Daniel Stout, who previously supervised the East Bay parole region and is currently assigned to the sex offender unit of parole headquarters. Mr. Stout participates in the drafting and editing process for contracts between CASOMB certified sex offender management program providers and the Division of Adult Parole Operations. He testified that it is the policy of the California Department of

Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge from parole. This was consistent with Dr. Loree's testimony of her understanding that Penal Code § 3008(d)(2) requires sex offender parolees to maintain "some connection to treatment" for the entire period of parole until discharge. Dr. Loree testified that Petitioner would be required to complete all twelve modules of maintenance with the HOPE program before moving to aftercare.

Petitioner's grievance sought admission to "maintenance" with the same level of program contact that had been required at Shaping Success – monthly individual check-ins and no group treatment. The testimony at the evidentiary hearing established that the minimum level of supervision required for "maintenance" at HOPE is participation in group meetings every other week and quarterly individual sessions. The testimony of the parole witnesses established that any appeal of Petitioner's grievance denial would be a futile act – the Division of Adult Parole Operations defers to the treatment provider's determination of the frequency of treatment, and HOPE's minimum maintenance treatment requirement exceeds the amount of programming required by the former provider. In this case, Petitioner can positively state what the administrative agency's decision in his particular case would be. The Court finds that he is not required to exhaust remedies under these circumstances.

B. Mootness/Unripe for Review

The Attorney General further contends that the petition is moot or unripe for review because Petitioner has already "received the relief he requested." Respondent's Return to the Order to Show Cause; Supporting Memorandum of Points and Authorities, p. 13, L. 23. It is apparent from the face of both the grievance and the petition for habeas corpus that Petitioner has not received the relief that he requested. Petitioner requested to be "placed back on maintenance *with the same frequency of contact that I had with Shaping Success provider*". (emphasis added by the Court). The evidence at the hearing amply demonstrated that not only has Petitioner **not** been placed in treatment at the same frequency of contact as previously required, but that the structure of the HOPE program makes it impossible for him to be placed

on the same level of contact. He will either be included in the maintenance phase, which requires group meetings every other week that Shaping Success did not require; or he will eventually transition to aftercare, which includes individual check-ins "as directed" rather than monthly.

Further, Petitioner's writ relief request seeks relief beyond that described in his parole grievance. He seeks a declaration by the Court that he has successfully completed the required sex offender management program defined in Penal Code § 3008, and that the Court order the Department of Corrections and Rehabilitation to cease requiring Petitioner's participation in an "additional" sex offender management program. As discussed above in relation to exhaustion, it is apparent from the testimony offered at the hearing that the Division of Adult Parole Operations takes the position that a "sex offender management program" cannot be completed prior to discharge from parole, and that Petitioner's completion of the treatment phase of the Shaping Success program does not satisfy the obligation for completion of a "sex offender management program". The Attorney General's contention that the petition is moot or unripe lacks merit.

C. Length of Participation in Sex Offender Treatment/Management

1. Habeas Corpus Relief

The fundamental goals of parole are to "'help individuals reintegrate into society as constructive individuals'", "'to end criminal careers through the rehabilitation of those convicted of crime'", and to [help them] become self-supporting." In re Hudson (2006) 14 Cal.App.4th 1, at p. 9, citing In re Stevens (2004) 119 Cal.App.4th 1228 at 1233. A condition of parole will not be held invalid unless it 1) has no relationship to the crime of which the offender was convicted, 2) relates to conduct which is not in itself criminal, and 3) requires or forbids conduct which is not reasonably related to future criminality. Conversely, a condition of parole which requires or forbids conduct which is not itself criminal is valid if that conduct is reasonably related to the crime of which the defendant was convicted or to future criminality. People v. Lent (1975) 15 Cal.3d 481 at 486.

Penal Code § 3008(a) requires the Department of Corrections and Rehabilitation to "ensure that all parolees under active supervision who are deemed to pose a high risk to the public of committing sex crimes, as determined by the State-Authorized Risk Assessment Tool for Sex Offender (SARATSO), … are placed on intensive and specialized parole supervision." Penal Code § 3008(c) further requires the Department to "develop control and containment programming for sex offenders who have been deemed to pose a high risk to the public of committing a sex crime, as determined by the SARATSO, and **shall** require participation in appropriate programming as a condition of parole." (emphasis added by the Court). Penal Code § 3008(d)(2) provides that:

> Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crimes were committed.

Petitioner was convicted of sodomy by force, with the resulting requirement that he register as a sex offender pursuant to Penal Code § 290. The Static-99R is the SARATSO used by the Department to determine risk level, and the hearing evidence establishes that Petitioner's SARATSO score places him in the "high-risk" category. The challenged special condition of parole requiring him to "report to and actively participate in a Division of Adult Parole Operations approved sex offender treatment program" is statutorily required. Applying the Lent test, Petitioner's habeas corpus claim fails. On its face, the challenged special condition of parole is reasonably related both to the crime of which Petitioner was convicted and to his future criminality.

Petitioner's argument that his completion of the "treatment" phase of Shaping Success qualifies as completion of the single sex offender management program required by Penal Code § 3008 is without merit. Petitioner's completion of group counseling with Shaping Success did not result in the termination of his further participation in the program. He was still required to report monthly for individual check-ins and to complete periodic polygraph

testing. His certificate of treatment completion expressly stated that it was not certification that had completed the sex offender management program and that further requirements applied. Petitioner never "completed" a sex offender management program, and the current requirement for participation in the HOPE program is a continuation of the original program with a different provider – not a second program. Petitioner's habeas corpus claim is denied.

2. Court Approval of Length of Participation in Sex Offender Management Program per Penal Code § 3008(d)(2)

Petitioner further asks the Court to exercise the statutory discretion conferred by Penal Code § 3008(d)(2) to set the length of the required sex offender management program in his case as something less than the entire period of parole. The Court grants that request for the following reasons. Penal Code § 3008(d)(2) fixes the length of a sex offender management program as no less than one year and up to the entire period of parole "as determined by the sex offender management professional in consultation with the parole officer and as approved by the court." The evidence in this case demonstrates that the "consultation" contemplated by the statute between the sex offender management professional and parole in this case worked only one way – the program told parole what was required and parole deferred. The HOPE program's determined level of necessary treatment for parolees who had completed Shaping Success's treatment phase was not dependent on individualized criteria. All parolees moving into the HOPE program were required to complete at least two new sets of group counseling – the "pre-treatment" seven module phase, and the "maintenance" twelve module phase – without regard to their individual risk assessments[1], likelihood of re-offense, or history on parole supervision. Both the CASOMB provider and the Division of Adult Parole Operations take the position that a sex offender cannot successfully "complete" a sex offender management treatment program short of being discharged from parole. The discretion

---

[1] While Dr. Loree's testimony established that HOPE conducted both static and dynamic risk assessments on intake, the testimony also established that all offenders had to complete the seven module "pre-treatment" phase, and all were placed into the twelve module maintenance phase regardless of score. There was apparently no evaluation as to whether maintenance or aftercare placement was appropriate, and no explanation of how the Shaping Success treatment "curriculum" differed from HOPE's such that HOPE's programming was non-duplicative of that already completed by Shaping Success parolees in the "maintenance" phase.

conferred by statute on the Division of Adult Parole Operations and this CASOMB provider is apparently being exercised in all cases to require participation in a sex offender management program for the entire term of parole, apparently without reference to the individualized performance of each parolee. Discretion exercised in that fashion vitiates the Legislature's directive that program participation should last at least one year and "up to" the entire parole term, and effectively requires all parolees participating in this program to do so for the entire term of parole.

The Court, in other cases, has certainly encountered parolees for whom public safety demands participation in a sex offender management program for the entire term of parole. Such a requirement may be justified by a parolee's resistance to supervision, refusal to genuinely engage in treatment, refusal to accept responsibility for the commitment offense, and other similar factors. None of those considerations are present in Petitioner's case. The Legislature's guidance on the purpose of parole is as follows:

> [T]he period immediately following incarceration is critical to successful reintegration of the offender into society and to positive citizenship. It is in the interest of public safety for the state to provide for the effective supervision of and surveillance of parolees, including the judicious use of revocation actions, and to provide educational, vocational, family, and personal counseling necessary to assist parolees in the transition between imprisonment and discharge. Penal Code § 3000(a)(1).

In this case, the undisputed evidence establishes that Petitioner is meeting the goals of successful reintegration into society. His prior CASOMB-certified provider certified to parole that he had "demonstrated sufficient progress in meeting the goals and objectives of an individualized treatment plan" so as to no longer require group counseling. (Exhibit 9H). He has stable housing and employment. He has progressed in his trade and has enrolled in community college to advance his career prospects. He has a stable family. His performance on parole for at least the last three years has been so positive that his supervising parole officer has recommended his complete discharge from parole supervision, and that recommendation was approved for submission to the Board by multiple supervisory layers of parole administration. Petitioner's other special conditions of parole require in relevant part:

continuous GPS monitoring, parole approval of employment, parole approval of residence with accompanying curfew hours, restrictions on travel, substantial restrictions on use of any computer with accompanying search conditions, and participation in both substance abuse and mental health treatment as directed by parole. Petitioner's other parole conditions are sufficient to meet the public safety requirement for effective supervision and surveillance. His continued engagement in the HOPE program does not serve to "assist [Petitioner] in the transition between imprisonment and discharge", since his parole agent and that agent's supervisors have apparently determined that he is ready for a recommended earned discharge. The Court exercises the authority conferred by Penal Code § 3008(d)(2) to disapprove any further participation in a sex offender management program as a condition of Petitioner's parole, and fixes the length of the required sex offender management program as terminating on March 20, 2023.

DISPOSITION

For the foregoing reasons, the Petition for Writ of Habeas Corpus is HEREBY DENIED. Pursuant to the authority granted by Penal Code § 3008(d)(2), the Court disapproves any further participation in a sex offender management program as a condition of parole, and fixes the length of the sex offender management treatment program required by his sentence as terminating on March 20, 2023.

DATED: _____

ELECTRONICALLY SIGNED

Judge Elizabeth M. Hill
Electronically signed.
Redwood City, CA
2023.03.20
12:24:08-07'00'

Elizabeth M. Hill
Judge of the Superior Court of California
San Mateo County

EXHIBIT C

DEPARTMENT 86 LAW AND MOTION RULINGS

Case Number: 23STCP02378 **Hearing Date:** December 13, 2023 **Dept:** 86

ALLIANCE FOR CONSTITUTIONAL SEX OFFENSE LAWS, INC. v. MACOMBER

Case Number: 23STCP02378

Hearing Date: December 13, 2023

[Tentative] ORDER OVERRULING DEMURRER

Respondent, Jeff Macomber, Secretary of the California Department of Corrections and Rehabilitation (CDCR), demurs to the petition for writ of mandate filed by Petitioners, Alliance for Constitutional Sex Offense Laws, Inc., Christopher Sandahl, Joshua Morales, Alexander Flores, John Doe # 1, and John Doe # 2 (collectively, Petitioners).

Petitioners' unopposed Request for Judicial Notice (RJN) of Exhibits A and B is granted.

SUMMARY OF PETITION ALLEGATIONS

The five individual Petitioners are parolees subject to the jurisdiction of the CDCR. Petitioner, Alliance for Constitutional Sex Offense Laws, Inc., is a non-profit organization. (Pet. ¶¶ 9-17.)

Petitioners contend "CDCR's regulations, policies, and practices are inconsistent with and in conflict with the statutory requirements of the 'Containment Model' of parole supervision codified in Penal Code section 3008, subds. (d)(1)-(d)(4), and related statutes." (Pet. ¶ 1.)

The petition alleges Penal Code section 3008, subdivision (d) and related statutes codify the Containment Model. (Pet. ¶¶ 20-24.) The petition explains Penal Code "Section 3008(d) requires each Registrant on parole to 'successfully complete **a** sex offender management program . . . as a condition of parole.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.)" (Pet. ¶ 2.) "[T]he Legislature declared that 'the length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court.' (Cal. Penal Code § 3008, subd. (d)(2), emphasis added.) In other words, Section 3008(d) requires CDCR to provide Registrants the opportunity to 'complete,' and thereby terminate their participation in, the management program as early as one year after placement on parole." (Pet. ¶ 3.)[1]

As relevant to this demurer, the petition alleges, in conflict with Penal Code section 3008, subdivision (d), CDCR regulations, policy, and practice do not allow registrants to complete and discontinue the management program prior to discharge from parole. (Pet. ¶¶ 31-55, 57-60.) Among others, relevant allegations in support of this claim include the following:

> The only CDCR regulation that expressly implements Section 3008 and the management program it requires as a condition of parole is Title 15, Section 3573, of the Code of Regulations. . . . Notably, no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates. (Pet. ¶ 32.)
>
> Notably, the Operations Manual for CDCR's Division of Adult Parole Operations confirms that Registrants are retained in the management program for the duration of their parole term, regardless of whether continued participation is necessary. . . . (Pet. ¶ 33.)
>
> [U]pon information and belief, as a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)
>
> CDCR recently confirmed its policy in the habeas corpus proceeding captioned *In re Frederick Dwyer* (See Exh. A, Order dated March 20, 2023 in San Mateo Co. Super. Ct. Case No. SC-080355A, HC-3020). (Pet. ¶ 35 and Exh. A.)
>
> The Registrant challenged the requirement to repeat the treatment curriculum in a petition for writ of habeas corpus, invoking the Court's discretionary authority to terminate a sex offender management program after one year pursuant to Section 3008. The Court held an evidentiary hearing at which it found that the sole basis for retaining the Registrant in the management program was CDCR's policy of requiring all Registrants to participate in the program for the duration of parole, regardless of their individual treatment needs. (Exh. A, at p. 10.) CDCR agents including the Registrant's individual parole agent, as well the parole administrator for the East Bay District (Alameda and Contra Costa County), confirmed that policy in response to the Court's inquiry:
>
> [THE COURT:] Have you ever during the time that you have been in the positions that you have described were responsible to 290 registrants seen a participant in a sex offender management program complete such a program prior to[] termination or discharge from parole?
>
> THE [CDCR] WITNESS: No.
>
> THE COURT: Is it essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program . . . ?
>
> THE [CDCR] WITNESS: Yes.

(Transcript of Hearing on February 9, 2023 in *In re Dwyer*, (San Mateo Co. Super. Ct. Case No. SC080355A, HC-3020). See also Order, Exh. A, at pp. 6-7 ["[A former East Bay region supervisor from CDCR] testified that it is the policy of the California Department of Corrections and Rehabilitation and the Division of Adult Parole Operations that a sex offender management program as defined in Penal Code § 3008 cannot be completed short of discharge 3 from parole."].) (Pet. ¶ 39.)

Based on these and other allegations, Petitioners seek a writ of mandate directing Respondent "to amend and revise its regulations implementing Penal Code section 3008(d), including its Regulations at Code of Regulations, Title 15, section 3573, to permit Penal Code section 290 Registrants supervised by CDCR on parole to complete and be terminated from the sex offender management program required by Penal Code section 3008(d) after one year in the program, and prior to discharge from parole." (Pet. ¶¶ 56-61 and Prayer ¶ A.)

In the second cause of action for declaratory relief, Petitioners pray for "a judgment declaring that Penal Code section 3008(d) prohibits CDCR from retaining, as a matter of policy or practice, all Registrants in a sex offender management program for the entire term of parole." (Pet. ¶¶ 63-68 and Prayer ¶ B.)

LEGAL STANDARD FOR DEMURRER

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters." (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of a petitioner on demurrer. (See *Mobil Oil Corp. v Exxon Corp.* (1986) 177 Cal.App.3d 942, 947.) "A demurrer must dispose of an entire cause of action to be sustained." (*Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

ANALYSIS

<u>First Cause of Action – Writ of Mandate</u>

-

The first cause of action is for ordinary mandate pursuant to Code of Civil Procedure section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate:

(1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (*California Ass'n for Health Services at Home v. Department of Health Services* (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where . . . the claim is that an agency has failed to act as required by law." (*Id*. at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 700.) "A ministerial act is an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." (*Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916.)

" 'While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner . . . [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal or officer, when the law clearly establishes the petitioner's right to such action.' " (*Flores v. Dept. of Corrections & Rehabilitation* (2014) 224 Cal.App.4th 199, 208.)

Respondent argue Petitioners have not stated a cause of action for mandate because:

(1) Petitioners failed to exhaust their administrative remedies in CDCR's "robust administrative grievance and appeal process (Memo 11:6-7); (2) the petition provides "no factual support" (Memo 12:18); (3) Petitioners "fail to establish a ministerial duty or valid rule making challenge" related to CDCR's regulations (Memo 16:12); and (4) Petitioners have an adequate legal remedy in a petition for writ of habeas corpus. (Memo 16:16.)

Petitioners assert the demurrer misapprehends the nature of the petition and fails to address all pertinent allegations. The court agrees. Respondent's demurrer does not persuasively address Petitioner's specific legal claim or all pertinent allegations, including those based on evidence from *In re Frederick Dwyer*. For that reason, and the additional reasons outlined below, the demurrer is overruled.[2]

Exhaustion of Administrative Remedies

Exhaustion of administrative remedies is "a jurisdictional prerequisite to judicial review." (*California Water Impact Network v. Newhall County Water Dist.* (2008) 161 Cal.App.4th 1464, 1489.)
"The exhaustion requirement applies whether relief is sought by traditional (Code Civ. Proc., § 1085) or administrative (Code Civ. Proc., § 1094.5) mandamus." (*Eight Unnamed Physicians v. Medical Executive Com.* (2007) 150 Cal.App.4th 503, 511.)

"Before seeking judicial review a party must show that he has made a full presentation to the administrative agency upon all issues of the case and at all prescribed stages of the administrative proceedings." (*Edgren v. Regents of University of California* (1984) 158 Cal.App.3d 515, 520.) There are exceptions to the exhaustion requirement, including "when the subject of the controversy lies outside the administrative agency's jurisdiction, when pursuit of an administrative remedy would result in irreparable harm, when the administrative agency cannot grant an adequate remedy, and when the aggrieved party can positively state

what the administrative agency's decision in his particular case would be." (*Edgren v. Regents of University of California, supra,* 158 Cal.App.3d at 520.)

Respondent contends CDCR's governing regulations establish a "robust administrative grievance and appeal process for inmates and parolees . . . to challenge imposed parole conditions or seek modifications of the conditions imposed before seeking judicial relief." (Memo 11:6-10 [citing Cal. Code Regs., tit. 15, § 3481, subd. (a).)[3] CDCR's exhaustion argument might be persuasive if Petitioners were seeking writs to terminate their own participation in a treatment program or other relief specific to their individual parole conditions. However, Petitioners do not seek such relief. Instead, Petitioners challenge the legality of CDCR's regulatory implementation of Penal Code section 3008 and the sex offender management and treatment program (SOMP) across the state. Petitioners "seek a writ of mandate directing CDCR to amend its regulations to authorize completion of and termination from the sex offender management program prior to discharge from parole." (See Pet. ¶ 6; see also ¶¶ 34-41, 56-61, and Prayer.)

The petition asserts certain CDCR promulgated regulations, in addition to its policies and practices for implementing such regulations, conflict with a controlling statute. Parties are "not required to exhaust administrative remedies" when they "attempt to enforce [an agency's] compliance with . . . controlling statutes," or when the challenged agency action "is based upon a regulation it promulgated." (*United Teachers-L.A. v. Los Angeles Unified School Dist.* (1994) 24 Cal. App. 4th 1510, 1519 n.4; *Sabatasso v. Superior Court* (2008) 167 Cal. App. 4th 791, 795.) While the regulation (Cal. Code Regs., tit. 15, § 3481, subd. (a)) does authorize the claimant to submit a grievance disputing a "policy" of CDCR, Respondent fails to develop an argument the regulation provides an administrative remedy for a challenge to CDCR's promulgated regulations and state-wide implementation of such regulations. Nor does Respondent cite any statutory authority or case law supporting its position.

Petitioners have sufficiently pleaded an excuse from the exhaustion requirement, including lack of adequate administrative remedy.

Petitioners Have Alleged Sufficient Facts to State a Cause of Action for Ordinary Mandate, including a Ministerial Duty

-

Respondent contends "[t]here is no factual support for the petitioners' claim that all sex offenders must participate in all aspects of the SOMP [supervision, treatment, and polygraph] for the duration of their statutory parole term." (Memo 12:18-20.) Citing allegations pertaining to the individual Petitioners, Respondent contends "the petitioners' cherry-picked facts do not support their claim that sex offenders are always held to their statutory maximum parole period and required to participate in SOMP for that duration . . . ." (Memo 13:12-14.)

To be sure, Petitioners are not required to provide "factual support" at the pleading stage. "A pleading 'is sufficient if it alleges ultimate rather than evidentiary facts.' " (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1027.)

Petitioners have alleged the following ultimate facts, among others, in support of their traditional writ cause of action:

> [A]s a matter of policy and practice, CDCR does not permit any Registrant to 'complete' the management program prior to discharge from parole, as Section 3008(d) contemplates. Nor does CDCR otherwise allow a Registrant's participation in the management program to be terminated, as Section 3008(d) contemplates. Rather, CDCR and CDCR, as a matter of policy, retain all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense. (Pet. ¶ 34.)

Although not required at the pleading stage, Petitioners have also pleaded certain evidentiary facts. For example, Petitioners allege in the *In re Frederick Dwyer Dwyer* habeas corpus proceeding, the trial court heard testimony from a CDCR regional supervisor reporting it is "essentially the policy of the Department of Corrections that completion of the program is not possible before the discharge from parole program." (Pet. ¶ 39.)[4] The petition also provides information about how all five individual Petitioners have been "retained in the management program indefinitely rather than evaluated for termination from the program, as Section 3008(d) contemplates." (Pet. ¶¶ 43-55.) These ultimate facts and factual allegations are sufficient to state a claim.

Relatedly, Respondent contends Petitioners have not alleged a ministerial duty owed by Respondent and enforceable by mandate. (Memo 14:8-16:12.) Although the argument is not well developed and is unclear, Respondent appears to contend section 3573 of title 15 of the California Code of Regulations (Section 3573) "does not amend, impair, or limit the scope of section 3008(d)(2) as nothing in Penal Code section 3008(d)(2) prohibits nor mandates that the Secretary exercise his discretion in any particular manner." (Memo 15:26-28.) Respondent notes the "regulation does not exempt *any* sex offender parolees from requesting or being granted early discharge from their statutory parole period." (Memo 15:28-16:2.) That a sex offender parolee may request early discharge does not appear to inform on the validity of the regulation.

The petition is partly based on an alleged conflict between Section 3573 and Penal Code section 3008, subdivision (d) (see Pet. ¶ 32), but the petition also alleges "CDCR, ***as a matter of policy***, retain[s] all Registrants in a management program until their discharge date, regardless of whether they have completed the treatment curriculum, and regardless of the Registrant's individual treatment needs, supervision level, or risk of re-offense." (Pet. ¶ 34 [emphasis added].) Further, as to Section 3573, the petition alleges "no provision of Section 3573 or any other regulation allows for the 'completion' of the management program. Nor does Section 3573 or any other regulation allow for termination of a Registrant's participation in the management program prior to discharge from parole, as Section 3008(d) contemplates." (Pet.

¶ 32.)

Respondent does not demonstrate Petitioner's allegations concerning Section 3573 are incorrect. Even if Section 3573 does not expressly prevent parolees from "requesting or being granted early discharge from their statutory parole period," as argued by Respondent, the petition sufficiently alleges the regulation is interpreted and implemented by CDCR in a manner that conflicts with Penal Code section 3008, subdivision (d).

"[M]andamus may issue to compel an official both to exercise his or her discretion (if he or she is required by law to do so) and to exercise it under a proper interpretation of the applicable law." (*California Assn. for Health Servs. at Home v. State Dept. of Health Care Servs*. (2012) 204 Cal.App.4th 676, 683; see also Gov. Code, § 11342.2. ["Whenever by the express or implied terms of any statute a state agency has authority to adopt regulations to implement, interpret, make specific or otherwise carry out the provisions of the statute, no regulation adopted is valid or effective unless consistent and not in conflict with the statute and reasonably necessary to effectuate the purpose of the statute."])

Because Petitioners have alleged CDCR's regulations, policies, and practices conflict with the controlling statutes, including Penal Code section 3008, subdivision (d), Petitioners have alleged a cause of action for traditional mandate.

- Petitioners Sufficiently Allege They Lack a Plain, Speedy, and Adequate Remedy in the Ordinary Course of Law

Respondent contends Petitioners have an adequate legal remedy through a petition for writ of habeas corpus "to challenge their parole condition that requires them to participate in the SOMP." (Memo 17:6-7.)

The argument is unpersuasive for at least three reasons. First, it misapprehends the nature of Petitioners' writ claim as a challenge to individual parole conditions, rather than a challenge to Respondent's state-wide regulations, policies, and practices. Second, it ignores applicable case law, which held, in similar circumstances, that "[a] writ of habeas corpus . . . is not available 'in the ordinary course of law'" because it is "an extraordinary remedy." (*Villery v. Department of Corrections & Rehabilitation* (2016) 246 Cal. App. 4th 407, 415-16.) Finally, Respondent does not demonstrate, for purposes of a demurrer, that numerous habeas corpus petitions challenging CDCR's regulations, policies, and practice would be more "speedy" or "adequate" than a single writ petition raising the same claim.

Respondent does not addressed *Villery v. Department of Corrections & Rehabilitation* or Petitioners' other contentions regarding the inadequacy of habeas corpus petitions for the claim made in the petition. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc., supra,* 111 Cal.App.4th at 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

Petitioners have sufficiently alleged they lack a plain, speedy, and adequate remedy in the ordinary course of law.

-

///

- Demurrer for Uncertainty

Respondent contends "use of the fictitious names John Doe # 1 and John Doe # 2 render the petition uncertain and ambiguous providing additional grounds for the Court to sustain the demurrer." (Memo 13:16-17.)

Demurrers for uncertainty are strictly construed. Discovery can be used for clarification. A demurrer for uncertainty is appropriate only where a defendant cannot reasonably determine what issues or claims are stated. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) "[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend." (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

-

Here, even with the use of fictitious names for Petitioner Does 1 and 2, Respondent can reasonably determine the nature of Petitioners' claims. Notably, Petitioners' claims are also based on allegations concerning the *In re Frederick Dwyer* litigation and the other, named individual Petitioners. Further, as discussed earlier, the petition does not seek writ relief as to any individual's parole conditions. Instead, Petitioners challenge Respondent's statewide regulations, policies, and practices. In these circumstances, the use of fictitious names for two of the Petitioners does not render the pleading uncertain as asserted by Respondent.

Respondent has not demonstrated his demurrer for uncertainty should be sustained.

New Reply Arguments

In reply, Respondent admittedly challenges the petition based on entirely new arguments not discussed in his demurrer. Specifically, Respondent contends: (1) Petitioners have not alleged sufficient facts to support a facial challenge to Section 3573 (Reply 3:5-6); (2) the petition allegations are insufficient because they are made on "information and belief" and "Petitioners do not rely on their own circumstances or experience in relation to th[e] alleged [unlawful] policy and practice" (Reply 6:9-11); (3) testimony from the *In re Frederick Dwyer* litigation is insufficient to state a cause of action for mandate (Reply 7:12-14); and (4) Petitioners have not alleged standing to make "as applied" challenges to CDCR's regulations, policies, and practices based on a "hypothetically similar petitioner." (Reply 7:14, fn. 3.)

"The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before." (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010; see also *Regency Outdoor Advertising v. Carolina Lances, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

Respondent does not show good cause to raise new arguments in reply. The reply arguments are legal in nature and could have been raised in the demurrer. Respondent's counsel's meet and confer declaration states that on August 11, 2023 counsel for Respondent and Petitioner discussed "the Secretary's position that claims raised in the petition failed as a matter of law." (Heinisch Decl. ¶ 4.) Nonetheless, there is no explanation for failing to raise the Respondent's reply arguments in the demurrer. Petitioners have not had a full and fair opportunity to respond in writing to the arguments initially raised in Respondent's reply. Under the circumstances, the court declines to consider the new reply arguments summarized above.[5]

Second Cause of Action – Declaratory Relief

Respondent argues "Petitioners' claim for declaratory relief is wholly and entirely dependent on their claim for mandamus relief" and should be sustained. (Memo 17:10-11.) However, as argued by Petitioners, the second cause of action is based on Government Code section 11350, subdivision (a), in the Administrative Procedures Act and, therefore, is not derivative of the writ cause of action.[6] Respondent does not address the argument in reply and thereby concedes it for purposes of this demurrer. (*Sehulster Tunnels/Pre-Con, supra,* 111 Cal.App.4th at 1345, fn. 16.)

CONCLUSION

The demurrer is overruled.

IT IS SO ORDERED.

December 13, 2023

Hon. Mitchell Beckloff

Judge of the Superior Court

---

[1] Specifically, Penal Code section 3008, subdivision (d)(2) provides: "(d) On or after July 1, 2012, the parole conditions of a person released on parole for an offense that requires registration pursuant to Sections 290 to 290.023, inclusive, shall include all of the following: . . . (2) Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed."

[2] In reply, Respondent does not specifically defend the arguments he made in his demurrer. Instead, Respondent makes entirely new arguments which is procedurally improper. In a footnote, Respondent states he "does not abandon any arguments raised in the demurrer. Respondent relies on the arguments as presented in the demurrer in addition to those presented in this reply." (Reply 3, fn. 1.) While Respondent may not have "abandoned" any legal arguments for purposes of this proceeding, he has not responded to many, if not all, of Petitioners' opposition arguments concerning the sufficiency of the pleading. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"].)

[3] The regulation states in part: "A claimant has the ability to submit a written grievance to the department containing one or more claims, subject to the requirements in section 3482, to dispute a policy, decision, action, condition, or omission by the department or departmental staff. . . ." (Cal. Code Regs., tit. 15, § 3482, subd. (a).)

[4] Respondent wholly ignores the *In re Frederick Dwyer* allegations in the demurrer. In reply, Respondent argues the *In re Frederick Dwyer* allegations could only be relevant to a claim of collateral estoppel. (Reply 6:27-7:3.) The court disagrees. Whether the *In re Frederick Dwyer* decision has any collateral estoppel effect, testimony from that action may constitute judicial admissions or otherwise lead to evidence in support of Petitioner's claim. As a result, the ultimate ruling of the San Mateo County Superior Court in *In re Frederick Dwyer* is not determinative here. (See Reply 7:4-14.)

[5] Alternatively, even if the court considers the new reply arguments, the court reaches the same result and overrules the demurrer for the reasons discussed above and in Petitioners' opposition. Given the liberal pleading standard and the allegations that Respondent's regulations, policies, and practices are unlawful, including based on testimony from a CDCR regional supervisor in the *In re Frederick Dwyer* litigation, the reply arguments do not persuade the court that the demurrer should be sustained. Of course, Respondent is not precluded from further developing its arguments for the trial on the writ petition.

[6] Government Code section 11350, subdivision (a) states in pertinent part: "Any interested person may obtain a judicial declaration as to the validity of any regulation or order of repeal by bringing an action for declaratory relief in the superior court in accordance with the Code of Civil Procedure. . . . The regulation or order of repeal may be declared to be invalid for a substantial failure to comply with this chapter. . . ."

EXHIBIT D

State of California
Office of Administrative Law

In re:
Department of Corrections and Rehabilitation

Regulatory Action:

Title 15, California Code of Regulations

Adopt sections: 3574
Amend sections:
Repeal sections:

***AMENDED* NOTICE OF APPROVAL OF CERTIFICATE OF COMPLIANCE**

Government Code Sections 11349.1 and 11349.6(d)

OAL Matter Number: 2025-0321-01

OAL Matter Type: Certificate of Compliance (C)

Through this Certificate of Compliance action, the Department of Corrections and Rehabilitation makes permanent the emergency regulatory changes adopted in OAL File No. 2024-0924-02EON and readopted in OAL 2025-0311-01EON. Specifically, the adoption of Section 3574 into California Code of Regulations, Title 15 (CCR 3574) regarding the sex offender treatment program for sex offender supervised persons.

OAL approves this regulatory action pursuant to section 11349.6(d) of the Government Code.

Date: April 28, 2025

Allegra Volonte Anvari
Attorney

For: Kenneth J. Pogue
Director

Original: Jeffrey Macomber, Secretary
Copy: Dmitriy Kostyuk

TEXT OF ADOPTED REGULATIONS

In the following, underline indicates new text.

California Code of Regulations

Title 15. Crime Prevention and Corrections

Division 3. Adult Institutions, Programs and Parole

Chapter 1. Rules and Regulations of Adult Operations and Programs

Subchapter 6. Adult Parole

Article 5. Sex Offenders

3574. Sex Offender Treatment

(a) The requirement for a supervised person to attend sex offender treatment is established pursuant to Penal Code (PC) section 3008(d), persons released to parole and required to register pursuant to PC sections 290 to 290.023 shall participate in a sex offender management program. The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM~~s~~), and polygraph examinations. Sex offender treatment providers (who~~m~~ are trained and certified pursuant to PC 290.09) shall be subject to the terms of the California Sex Offender Management Board.

(1) Curriculum Phase, also known as the active phase, is when the supervised person attends individual and group therapy sessions, at the prescribed hours per week, as determined by the sex offender treatment provider. These sessions focus on the goals and objectives of the treatment plan determined by the sex offender treatment provider through the sex offense specific treatment curriculum. It also involves the completion of mandated State Authorized Risk Assessment Tools for Sex Offenders (SARATSO) and the participation in polygraph assessments.

(2) Maintenance Phase is a phase where the supervised person works to maintain the gains made in the curriculum phase. Maintenance phase occurs when a supervised person has addressed the underlying issues related to their offending behavior, developed skills to lead a pro-social life, and mitigated their dynamic risk factors (according to the SARATSO assessment tools), as determined by the sex offender treatment provider, allowing for adjustment of treatment requirements. While in the maintenance phase, the supervised person is expected to continue to work towards their prescribed treatment plan goals, complete SARATSO assessments, participate in polygraph assessments, and attend group sessions as determined by the sex offender treatment provider. The supervised person may be required to attend in person sessions

weekly, monthly, or quarterly, based on their predetermined needs and assessments by the sex offender treatment provider.

(3) Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. This phase is for supervised persons who voluntarily continue their participation in the sex offender management program after they have successfully completed the curriculum and maintenance phases or persons who have been discharged from parole supervision.

(A) Persons voluntarily participating in the aftercare phase are responsible for any costs associated with participation.

(4) Containment Team Meeting is a meeting with all involved parties, as referenced in subsection 3574(a)(4)(A), whose purpose is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case factors to evaluate the supervised person's readiness for sex offender management program completion.

(A) The Containment Team shall normally be comprised of a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative. In the event all members of the Containment Team are not available to meet, the Containment Team shall minimally consist of a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person. The Containment Team may also include other relevant stakeholders (e.g. Division of Adult Parole Operations and community program managers, polygraph examiner, etc.), family members of the supervised person, or any person in the supervised person's life that wishes to participate and can provide a first-hand account of the positive progress the supervised person is making.

(5) A Polygraph is a machine that measures a person's physiological responses when they respond to questions. Polygraph assessments are completed or contracted by the sex offender treatment provider as required by PC section 3008(d)(3).

(b) Persons placed on parole on or after July 1, 2012, required to register pursuant to PC sections 290 to 290.023, inclusive, shall successfully complete a sex offender management program in accordance with PC section 3008(d). Program participation shall be no less than one year, up to the entire period of parole. Participation in the sex offender management program is required, regardless of when the qualifying offense was committed.

(c) The sex offender treatment provider prescribes the number of treatment hours per week as determined by the supervised person's risks, needs, responsivity, and offense-free time in the community.

(d) Supervised persons may complete a sex offender management program before discharge from parole, as contemplated by the PC section 3008(d).

(e) The Containment Team's review of program completion is solely to determine the length of a supervised person's participation and progress in sex offender treatment. This review is independent of whether the supervised person should be discharged from parole and the electronic monitoring requirements of the supervised person pursuant to PC 3010.10. The CTM schedule shall be as follows:

(1) The ~~first~~ initial CTM shall be between ~~within~~ 90 and 100 calendar days ~~of~~ from release to parole, or ~~within~~ between 90 and 100 calendar days ~~of the supervised person's revocation release date~~ following a release of a supervised person who has spent 90 days or more in custody. The purpose of this CTM is to determine the most appropriate level of parole supervision needed for monitoring the supervised person while in the community, in accordance with Section 3573(c).

(2) The second CTM shall be within nine months following the first CTM (one-year CTM). This is the first review to determine whether the supervised person's sex offender management program requirements have been satisfied, completing their statutory requirement to successfully complete a sex offender management program.

(3) All subsequent CTMs shall be at least annually thereafter in accordance with the supervised person's level of parole supervision.

(f) When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.~~7~~11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:

(1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

(2) Pursuant to Section 3573, a Stable-2007 score of four or higher for males only.

(3) A current polygraph completed with deception found or new disclosure admissions that the supervised person has committed acts that would incur a technical or law violation.

(4) Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review.

(g) The parole agent and unit supervisor may re-refer a supervised person to a sex offender management program for evaluation if there is a change in the supervised person's behaviors related to the risk of re-offense to a level likely to lead to a risk to

public safety, using the CDCR 1502 (Rev. 07/24) Activity Report. A re-referral may also be initiated at the request of the supervised person.

(1) Upon re-referral, the sex offender treatment provider shall complete the dynamic risk and violence risk assessments, pursuant to section 3573 and PC sections 290.04 and 290.09, to determine if the risk to re-offend has increased.

(A) If risk to re-offend has increased, the supervised person will be required to attend the sex offender management program, with the prescribed hours of treatment being determined by the sex offender treatment provider, until the increased risk to re-offend has been mitigated. While the supervised person is attending a sex offender management program, CTMs shall be re-established in accordance with Section 3574.

(B) If the sex offender treatment provider determines there is no increased risk in re-offense, the re-referral shall be considered closed, and the sex offender management program requirements remain completed.

Note: Authority cited: Sections 5058 and 5058.3, Penal Code. Reference: Sections 290 through 290.023, 3008, 5054, and 9003, Penal Code.

STATE OF CALIFORNIA

ADOPT

DEPARTMENT OF CORRECTIONS AND REHABILITATION
DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 11/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION (TO BE COMPLETED BY AGENT OF RECORD)

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	Supervision Level	Parole Unit

PC 290 Offense: | Commitment Offense (if different): | Participating in SOT: ☐ YES ☐ NO ☐ N/A

Select the form purpose and complete the associated form sections (Check one box)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3, 4 & 5 if applicable)
☐ Abbreviated CTM (Sections 1,3, & 4) ☐ Earned Discharge Consideration Committee (complete in PVDTS): PVDTS ID # _____

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear
☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

Other Participant's Name: _____ Relation to Supervised Person _____ Comments: _____

SECTION 2: ASSESSMENT SCORES (TO BE COMPLETED BY AGENT OF RECORD)

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
CSRA		☐ LOW (1) ☐ MODERATE (2) ☐ HIGH (3 TO 5)
STATIC (IF APPLICABLE)		☐ HIGH RISK SEX OFFENDER (HRSO)(4 AND ABOVE) ☐ NON-HRSO (3 AND BELOW)
FEMALE SEX OFFENDER RISK ASSESSMENT (IF APPLICABLE)		☐ HRSO (MODERATE, HIGH) ☐ NON-HRSO (LOW)
LS/CMI _____ Date Administered		☐ VERY LOW (0TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) _____ Date Administered		☐ LOW (0 TO 3) ☐ MODERATE (4TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH _____ Date Administered ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A — **DISCLOSURE ADMISSION** ☐ YES ☐ NO

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT (TO BE COMPLETED BY AGENT OF RECORD)

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: Field File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/EARNED DISCHARGE CONSIDERATION COMMITTEE

SECTION 4: CATEGORY DETERMINATION AND/OR SOT REVIEW (TO BE COMPLETED BY DAPO AND SEX OFFENDER TREATMENT PROVIDER)

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Date	Treatment Program Name	Date

Treatment Provider Sex Offender Treatment Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

AOR Supervision Category Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

☐ Comments:

Effective Communication/Accommodation Provided: ☐ NO ☐ YES

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete ☐ N/A

US Determination: ☐ Remain in Current Category ☐ Move to Category: _____ Effective Date: _____

☐ Comments:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER UNIT (SOU) DETERMINATION (TO BE COMPLETED BY SOU PAROLE ADMINISTRATOR/ PAROLE AGENT III)

☐ This section shall be completed when the supervising parole unit and the SOT provider have conflicting sex offender treatment recommendations.

SOU Parole Administrator/ Parole Agent III Sex Offender Treatment Recommendation: ☐ Retain ☐ Complete

☐ Comments:

Parole Administrator/ Parole Agent III Name	Parole Administrator/ Parole Agent III Signature	Badge #	Date

STATE OF CALIFORNIA

REPEAL

DIVISION OF ADULT PAROLE OPERATIONS

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 1: SUPERVISED PERSON'S INFORMATION

CDCR #	Supervised Person's Name (Last, First, M.I.)	Parole Date	Last Release Date	CDD	Supervision Level	Parole Unit

Commitment Offense(s): | PC 290 Offense:

CSRA SCORE: ☐ **LOW (1)** ☐ **MODERATE (2)** ☐ **HIGH (3 TO 5)** | Participating in SOMP: ☐ YES ☐ NO

(Select the form purpose and complete the associated form sections)

☐ Initial Containment Team Meeting (CTM) (Sections 1,2 & 4) ☐ CTM & Sex Offender Treatment Review (Sections 1,2,3,4 & 5)

☐ Abbreviated CTM (Sections 1,2,3 & 4) ☐ Earned Discharge Consideration Committee (Sections 1 & 6)

Was Supervised Person Present? ☐ YES ☐ NO If No, Cite Reason - Check Appropriate Box(es):

☐ Supervised Person Did Not Respond to Request ☐ Supervised Person is Not Required to Attend ☐ Supervised Person Failed to Appear

☐ Supervised Person Declined to Participate ☐ Supervised Person Participated Telephonically

☐ Effective Communication/Accommodation Provided:

Other Participants

Name:_____ Relation to Supervised Person_____ Comments: _____

SECTION 2: SEX OFFENDER TREATMENT ASSESSMENT SCORES

ASSESSMENT TOOL	SCORE	OBJECTIVE CRITERIA
STATIC SCORE OR FEMALE SEX OFFENDER RISK ASSESSMENT Date Administered: _____		☐ HIGH RISK SEX OFFENDER (HRSO) (MODERATE, HIGH, OR 4 AND ABOVE) ☐ NON- HRSO (LOW OR 3 AND BELOW)
LS/CMI Date Administered: _____		☐ VERY LOW (0 TO 4) ☐ LOW (5 TO 10) ☐ MODERATE (11 TO 19) ☐ HIGH (20 TO 29) ☐ VERY HIGH (30 AND ABOVE)
Stable 2007 (MALES ONLY) Date Administered: _____		☐ LOW (0 TO 3) ☐ MODERATE (4 TO 11) ☐ HIGH (12 AND ABOVE)
POLYGRAPH TYPE: ☐ **MAINTENANCE** ☐ **INSTANT OFFENSE** ☐ **SEXUAL HISTORY** Date Administered:_____ ☐ **INCONCLUSIVE**		**DECEPTION FOUND** ☐ YES ☐ NO ☐ N/A / **DISCLOSURE ADMISSION** ☐ YES ☐ NO ☐ N/A

SECTION 3: SUMMARY OF PAROLE ADJUSTMENT

OBJECTIVES	SCORE		OBJECTIVE CRITERIA (Select One Rating Per Objective) ☐ See Discharge Review Dated: _____
OBJECTIVE 1: Supervised person has maintained residence stability in a positive living environment.	☐	1	Has been in the same pro-social living situation for the review period, or most recent move was to improve overall living conditions, and current residence expected to remain stable.
	☐	2	Has been in two or more living situations for the review period with any move not improving the living conditions.
	☐	3	Has demonstrated an unstable living environment, is transient or routinely difficult to see at the residence of record.
OBJECTIVE 2: Supervised person's time has been structured around pro-social activities geared towards self-reliance.	☐	1	Time is highly structured and focused on pro-social activities.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
OBJECTIVE 3: Supervised person has been compliant with all general and special conditions of parole.	☐	1	No violation has been substantiated for the review period.
	☐	2	Has only one technical violation and demonstrated a positive response to the imposed sanction.
	☐	3	The supervised person has not met the rating standard for #1 or #2 below.
OBJECTIVE 4: Supervised person has been referred to and has participated in programming for the top three identified criminogenic needs.	☐	1	Attended, participated, and completed programming.
	☐	2	Attended and partially participated in programming.
	☐	3	Failed to participate or complete programming.
OBJECTIVE 5: Supervised person has been referred to and participated in required sex offender treatment.	☐	1	Attended, participated, and/or completed sex offender treatment.
	☐	2	Attended and partially participated in sex offender treatment.
	☐	3	Failed to participate or complete sex offender treatment.
	☐	4	Demonstrated deception in polygraph.
OBJECTIVE 6: Supervised person has been and is affiliated with other pro-social individuals.	☐	1	Relationships are primarily pro-social and supportive of a crime free lifestyle.
	☐	2	Time is moderately structured and generally focused on pro-social activities.
	☐	3	Time is unstructured and generally unaccounted for; involvement in pro-social activities is not evident.
TOTAL SCORE:			☐ **6 - 7 Reduction May be Warranted** ☐ **8-12 No Change Warranted** ☐ **13-19 Increase May be Warranted**

DISTRIBUTION: Original: C-File **Copies:** Agent of Record (AOR), Supervised Person

CONTAINMENT TEAM MEETING/ EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 3043 (Rev. 07/24)

SECTION 4: CATEGORY DETERMINATION

AOR Recommendation: ☐ Remain in Current Category ☐ Move to Category: _____

AOR Name	AOR Signature	Badge #	Date

AOR Comments and Instructions:

Unit Supervisor (US) Decision: ☐ Remain in Current Category ☐ Move to Category: _____ ☐ Effective Date: _____

US Name	US Signature	Badge #	Date

US Comments and Instructions:

District Administrator (DA) Decision: ☐ Supervised person is currently ST or SA and will be reclassified to SC **(DA Signature Required)**

DA Name **(If applicable)**	DA Signature	Badge #	Date

SECTION 5: SEX OFFENDER TREATMENT REVIEW

Treatment Provider Name	Treatment Provider Signature	CASOMB Certification Number	Treatment Program Name	Date

Treatment Provider Recommendation:

☐ Retain ☐ Complete ☐ Comments:

AOR Name	AOR Signature	Badge #	Date

AOR Recommendation:

☐ Retain ☐ Complete ☐ Comments:

Unit Supervisor (US) Name	US Signature	Badge #	Date

US Recommendation:

☐ Retain ☐ Complete ☐ Comments:

SECTION 6: EARNED DISCHARGE CONSIDERATION COMMITTEE

CDCR 1502-DR, Discharge Review Report, Provided to Supervised Person ☐ YES ☐ NO

Completed in Parole Violations Disposition Tracking System (PVDTS) ☐ YES ☐ NO

If YES, PVDTS ID Number: _____ ***Note: If YES, attach the PVDTS report in lieu of completing this section***

US Name	US Signature	Badge #	Date

US Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

DA Name	DA Signature	Badge #	Date

DA Recommendation:

☐ Discharge ☐ Retain on Parole ☐ Comments:

Administrative Review Officer (ARO) Name	ARO Signature	Badge #	Date

ARO Determination:

☐ Discharge ☐ Retain on Parole ☐ Comments:

FINAL STATEMENT OF REASONS

The Initial Statement of Reasons (ISOR) is incorporated by reference.

UPDATES TO THE INITIAL STATEMENT OF REASONS:

On January 3, 2025, the California Department of Corrections and Rehabilitation (CDCR or the department) published the Notice of Change to Regulations for Sex Offender Treatment, which began the public comment period. The department's Notice of Change to Regulations #25-01 was mailed the same day to individuals who had requested to be on the department's mailing list for regulation changes, was posted on the department's website, and copies were posted in CDCR institutions. Five written public comments were received during the public comment period. The comments are summarized and responded to below under the heading *Summaries and Responses to Written Public Comments Received During the Initial Comment Period*. A public hearing was held on February 20, 2025. The department received no comments during the public hearing.

DETERMINATIONS, ASSESSMENTS, MANDATES, AND FISCAL IMPACT:

The department has determined that no alternative considered would be more effective in carrying out the purpose for which this regulation is proposed or would be as effective and less burdensome to affected private persons or would be more cost effective to affected private persons and equally effective in implementing the statutory policy or other provision of law than the action proposed. No such alternatives were proposed or brought to the department's attention during the adoption of this rulemaking action.

The department has made an initial determination that the action will not have a significant adverse economic impact on business. Additionally, there has been no testimony or other evidence provided that would alter the department's initial determination.

The department has determined that this action imposes no mandates on local agencies or school districts, or a mandate which requires reimbursement pursuant to Part 7 (Section 17561) of Division 4 of the Government Code (GC).

The department has determined that no reasonable alternatives to the regulation have been identified or brought to the attention of the department that would lessen any adverse impact on affected private persons or small businesses than the action planned.

The department, in proposing the adoption of these regulations, has not identified nor has it relied upon any technical, theoretical, or empirical study, report, or similar document.

The department has relied upon the results of the Economic Impact Assessment, which can be found in the Notice of Proposed Regulations and is available for review as part of the rulemaking file.

NOTE REGARDING CDCR FORMS INCORPORATED BY REFERENCE (CCR, TITLE 1, SECTION 20):

This note explains the department's justification for incorporating forms by reference. The department uses over 1,500 forms, most of which are regulatory. It would be unduly

cumbersome, expensive and impractical to print all of these forms in the CCR text, therefore the department has always incorporated forms by reference, except in specific circumstances which do not apply in the case of these regulations.

The adopted, amended, and/or repealed forms included in this rulemaking action were made available to the public for review and were included in the notice of rulemaking sent to all parties who have requested notification.

AUTHORITY AND REFERENCES CITATIONS:

Penal Code sections 5058, 5058.3, 290 through 290.023, 3008, 5054, and 9003.

SUMMARIES AND RESPONSES TO WRITTEN PUBLIC COMMENTS RECEIVED DURING THE INITIAL COMMENT PERIOD:

Commenter #1

Comment 1: Pursuant to Section 3573, a Stable-2007 score of "four or higher for males only" shall be, amended to include but not limited to Transgender Men and Transgender Women. In addition, to include any sexual predator who is a biological person whose identity includes not soley Male or Transgender Female, or nonbinary. A stable score shall also be applicable to former biological males that now identify with an identity other than male.

In addition, it is imperative that the Aftercare Phase is a Mandatory Outpatient phase in the format of a support group with the sex offender treatment provider. The phase shall be for supervised persons and shall be mandated for no less than one, continuous year, to continue the sex offender's participation in the sex offender management program after the sex offender has successfully completed the curriculum and maintenance phases, or persons who have been discharged from parole supervision.

Response 1:

California Code of Regulations (CCR), Title 15, Section 3574 Sex Offender Treatment (f) (2) references reasons to retain a supervised person in a sex offender management program. Pursuant to this section, a Stable-2007 score of four or higher for males only is a factor. The California Sex Offender Management Board (CASOMB) has established State Authorized Risk Assessment Tools for Sex Offenders (SARATSO). These assessments are validated, and sex offender management professionals utilize the appropriate coding manual and addendums for determining scoring. The Stable-2007 is for males only and utilizes the appropriate coding. Gender identity is not a factor in the validation or application of the tool.

Regarding part two of the comment, CCR Title 15, Section 3574, Sex Offender Treatment, provides for a comprehensive evaluation of risk and needs for each supervised person. Sex Offender Treatment (SOT) participation is based on risk of re-offense to a level likely to lead to a risk to public safety. When the supervised person has successfully completed the maintenance phase it has been determined that their risk and needs have decreased

sufficiently to complete treatment. Additionally, requiring a person to attend a phase of treatment after it has been determined that they have successfully completed contradicts the purpose of the regulation. Lastly, aftercare phase is also voluntarily, attended by those who have discharged parole. The Division of Adult Parole Operations (DAPO) does not have the authority to require a person attend treatment if that person is no longer under the jurisdiction of DAPO.

Commenter #2

Comment: Commenter is an incarcerated person from High Desert State Prison. Commenter wants to know if there is a part from the proposed regulations for incarcerated persons who plead “no contest.” Commenter states these people were accused of horrible charges and had no choice but to accept deals. Commenter states these groups should be able to live their life without watching their backs. These incarcerated persons should be reviewed on a case-by-case basis, including review of the programs complete while incarcerated, and the evidence for the crime accused of, upon their release.

Response 2:

The requirement for persons placed on parole, that are required to register pursuant to Penal Code (PC) sections 290 to 290.023, inclusive, attend sex offender treatment as required by PC 3008(d). Specifically, PC 3008(d)(2) states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC.

Commenter #3

Comment 3: Commenter is an incarcerated person who provides some background information to their incarceration and sentencing. Commenter states that there are no rehabilitation efforts for incarcerated persons who are sentences as sex offenders, only punitive efforts. Commenter provides support for the proposed sex offender treatment program, but states that sex offender treatment efforts should be offered before release and completed during incarceration not after release, due to different life circumstances after release.

Response 3:

These regulations only establish parameters for the existing PC and are unable to alter the existing requirements set forth by PC. DAPO must abide by PC 3008(d)(2), which states, “Persons placed on parole on or after July 1, 2012, shall successfully complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.”

Additionally, the proposed regulations are regarding Sex Offender Treatment after the release from incarceration. The proposed regulations do not address institutional sex offender treatment programs or their availability. Therefore, the department cannot speak to or address this subject matter at the moment.

Lastly, your comment identifies concerns for potential costs associated with a supervised person’s request for a voluntary re-referral to SOT. PC 3008(e) states, “Any defendant ordered to be placed in an approved sex offender management treatment program pursuant to subdivision (d) shall be responsible for paying the expense of their participation in the program. The department shall take into consideration the ability of the defendant to pay, and no defendant shall be denied discharge onto parole because of their inability to pay.”

Commenter #4

Comments 4 and 5 are duplicative: Commenter is a sex offender treatment provider and is responding to NCR 25-05 to solicitate their services and be considered as a contractor to provide sex offender treatment services.

Response 4: The comment is either insufficiently related to the specific action or actions proposed, or too generalized or personalized to the extent that no meaningful response can be formulated by the department in refutation of or accommodation to the comment. Therefore, the comment is being dismissed.

Additionally, the department responded to the commenter with resources on how to bid on state contracts.

EXHIBIT E

Wage Notice - For your reference only

Srivastava, Priyanshi <psrivastava3@centerlinedrivers.com> Thu, C
Reply-To: "Srivastava, Priyanshi" <psrivastava3@centerlinedrivers.com>
To: "bnn.cdl@gmail.com" <bnn.cdl@gmail.com>
Cc: Erika <Erika@centerlinedrivers.com>, "Saxena, Anusha" <Asaxena@centerlinedrivers.com>, "Arora, Aryan" <aarora7@centerlinedrivers.com>

CENTERLINE a TRUEBLUE company

1600 East 4th Street, Suite 340
Santa Ana, CA 92701
888-213-7483

Employee Name Ngwanforbi, Brendan

Job Site Information
Lily Transportation - Toyota Dedicated
2451 Bishop Drive

San Ramon, CA 94583

Date 10/31/2024

Start Date 10/30/2024

Note All assignments are on a temporary basis, therefore the shift start and end time to day and/or week to week.

Anticipated Start Time

Anticipated End Time or until route is completed

End Date (if known)

Report to

Job Description and requirements Truck Driver - Valid CDL and Medical Card required and must be in possession at all time.

Pay Period You will be paid every Friday for work performed the previous work week.

Pay Rates Regular: $33.35
PREMIUM TIME: $50.03

Pay Type

Your pay type can be based on an hourly rate and/or any one or combination of the following if allowed by law: mileage, trip/run, drops, hooks, layovers, stops or salary. Your wage statement will indicate which pay receiving

Place of Payment

If you have chosen direct deposit, you wages will be deposited into the bank account specified in your direct deposit paperwork. If you have chosen payment by cash card, you wages will be available on your card have opted to receive a check, it will be mailed from Centerline's Santa Ana, CA office on payday.

Deductions

Centerline reserves the right to deduct from an employee's wage for any company debt or obligation such as, but not limited to, employee elected insurance premiums, local, state and federal required taxes and c support and garnishments. Wage deductions will only be made as permitted under local, state and federal regulations.

Worker's Compensation Carrier

The Insurance Company of the State of Pennsylvania | 175 Water Street, 18th Floor, New York, NY 10038 | Phone No: 212-458-7000 | Policy No: 086476613

Reminders

§ If safety equipment is provided, it will be at no charge to you.

§ Centerline does not provide or charge workers for services such as transportation and/or meals unless a per-diem applies. If a per diem applies, you will receive notice about the terms of the per diem.

§ You will not be charged for any supplies or training

§ You will not perform duties for a client that is undergoing a strike and/or lockout. Notify Centerline if you become aware of strike and/or lockout

§ Your employment is at will

I hereby acknowledge that Centerline, a TrueBlue company, provided me with my employment-related notice in accordance with the state regulations.

EXHIBIT F

ONLINE GOVERNMENT CLAIM FORM

Acknowledgement Notice of Collection

To utilize this online form, you must first read and acknowledge the Notice of Collection, which can be found below.
t

Department of General Services Privacy Notice on Information Collection
This notice is provided pursuant to the Information Practices Act of 1977, California Civil Code Sections 1798.17 & 1798.24 and the Federal Privacy Act (Public Law 93-579).
The Department of General Services (DGS), Office of Risk and Insurance Management (ORIM) is requesting the information specified on this form pursuant to Government Code Section 910.
The principal purpose for requesting this data is to process claims against the state. The information provided will/may be disclosed to a person or to another agency where the transfer is necessary for the agency to perform its constitutional or statutory duties; the use is compatible with a purpose for which the information was collected; and the use or transfer is accounted for in accordance with California Civil Code Section 1798.25.
Individuals should not provide personal information that is not requested.
The submission of all information requested is mandatory unless otherwise noted. If you fail to provide the information requested to DGS, or if the information provided is deemed incomplete or unreadable, this may result in a delay in processing.
Department Privacy Policy
The information collected by DGS is subject to the limitations in the Information Practices Act of 1977 and state policy (see State Administrative Manual 5310-5310.7). For more information on how we care for your personal information, please read the DGS Privacy Policy.
Access to Your Information
ORIM is responsible for maintaining collected records and retaining them for 5 years. You have the right to access records containing personal information maintained by the state entity. To request access contact:
DGS ORIM
Public Records Officer
707 3rd Street, West Sacramento, CA 95605

- (●) *I have read and acknowledge the Notice of Collection.*
- ( ) *I decline to read and acknowledge the Notice of Collection.*

Claimant Information

Claimant First Name
Brendan

Claimant Middle Name
Ngehsi

Claimant Last Name
Newanforbi

If you are filing as a business owner or on behalf of a business, please provide the name of the business here.

Business Name (if applicable)

Inmate or Patient Identification Number (if applicable)
BF3571

Do you have an attorney or representative or are you representing the claimant?

- ( ) *Yes*
- (●) *No*

ONLINE GOVERNMENT CLAIM FORM

Contact Information

Contact Information

Provide the address where you want to receive communication regarding the claim.

Street Address Line 1
1455 Cat Tail Drive

Street Address Line 2

City
Stockton

State
California

Zip
95204

Telephone number
209 801 4442

Confirmation of claim filing will be sent to the email address provided here.

Email Address
bnn.cdl@gmail.com

Is the claimant under the age of 18?
No

Do You Need to Add an Additional Claimant?

- ○ *Yes*
- ◉ *No*

ONLINE GOVERNMENT CLAIM FORM

Claim Information

Claim Information

Government claims need to filed against a State of California department. Please select one department from the menu below.
Department of Corrections and Rehabilitation

Do you need to name an additional state department?

- ○ *Yes*
- ◉ *No*

If the claim is against a department not listed, please provide the department name here.

Date of Incident

Provide the date of incident here. The date of incident is the date the event which caused you to file a claim occurred. If the claim involves multiple dates or a range of dates, please provide the first date here.

Date of Incident (if you are claiming multiple dates of incident, please provide the first date here)
11-19-2025

If you need to provide any additional dates or information about the date of incident, please do so here.

ONLINE GOVERNMENT CLAIM FORM

Claim Amount, Location, and Circumstances

Dollar Amount of Claim

Please provide the dollar amount being claimed.
$1,000,000.00

If you are claiming general damages, such as personal injury or pain and suffering, please choose a civil case type.

Civil Case Type

- ○ *Limited ($25,000 or less)*
- ◉ *Unlimited (over $25,000)*

Please explain how you calculated the amount you are claiming.
The amount claimed exceeds $25,000 (unlimited civil jurisdiction). Damages arise from the defective November 2025 Discharge Review Report (CDCR Form 1502-DR) that unlawfully retained Plaintiff on parole. All figures are derived directly from the facts and prayer in the verified Complaint for Damages (attached as Exhibit A to your claim if permitted) and will be proven at trial.
Loss of Liberty (Per Diem Value):
California law (Penal Code § 3001(a)(2) and 15 CCR § 3574) required discharge after one year unless good cause was shown with mandatory procedural safeguards. Defendants' fabricated eligibility rules, "Eagan" copy-paste error, omitted CTM/Form 3043, and failure to serve notice caused ongoing unlawful parole supervision (24/7 GPS, curfew, travel restrictions, mandatory HOPE treatment multiple times per week, searches, etc.).
These conditions constitute custodial restraint. The per diem value is substantial and established according to proof, but in no event less than $100 per day from November 19, 2025 (final approval date) onward.
- *From November 19, 2025, to claim presentation (February 10, 2026) ≈ 84 days = $8,400 minimum.*
- *This continues to accrue daily until discharge or judgment (projected future loss according to proof).*

Out-of-Pocket Economic Costs of Forced Compliance:
Direct expenses caused by the unlawful retention, including:
- *Transportation to HOPE treatment (≈30 miles round-trip, multiple sessions per week) at the IRS standard mileage rate.*
- *Time value of attendance (6–8 hours per week, including travel) at a reasonable hourly rate.*
- *Program fees, polygraph examinations, and mandated assessments.*
- *GPS equipment maintenance and charging costs.These are ongoing and will be proven at trial.*

Non-Economic Damages (Emotional Distress, etc.):
Severe, ongoing distress from: continuous GPS on a fabricated basis; humiliation of being labeled "non-compliant" or "failed" treatment (structurally impossible under HOPE's blanket policy); psychological harm from the "Eagan" error in the official report; chronic anxiety, sleep disruption, hypervigilance, and entrapment in a system with no achievable exit. Full amount according to proof.
Punitive Damages:
Against the individual defendants (Dodd, Noguchi, Rojo) for willful, oppressive conduct (conscious disregard of judicially condemned practices in Dwyer (2023) and the April 2025 regulatory amendments).
The total already far exceeds $25,000 and continues to grow daily. No statutory cap applies to general or punitive damages. All
calculations follow the Complaint's prayer (pages 21–22) and the per-diem minimum expressly pled. Supporting evidence (Discharge Review Report, court orders in Dwyer and Macomber, 15 CCR § 3574) is available upon request or at trial.

Claim Details

Please provide the location where the incident occurred. A specific street address is not required, but it is helpful

Claim Amount, Location, and Circumstances

Incident Address Line 1
612 Carlton Avenue

Incident Address Line 2

Incident City
Stockton

Incident State
California

Incident Zip
95203

Please briefly describe the damages or injury you are claiming.
Note: You will be able to attach supporting documents on the last page of this form.
Ongoing unlawful parole supervision caused by the defective November 2025 Discharge Review Report (CDCR Form 1502-DR).
Defendants applied fabricated eligibility rules (including a nonexistent "6.5-year" minimum and "10-year parole term" exclusion), inserted another parolee's name ("Eagan") in the official justification, omitted every mandatory procedural safeguard required by 15 CCR § 3574 (CTM, Form 3043, good-cause findings), and failed to serve the report on me.
Injuries claimed:
• Continued deprivation of liberty through 24/7 GPS monitoring, curfew, travel and association restrictions, warrantless searches, and mandatory HOPE sex-offender treatment (multiple sessions per week) without lawful authority — valued at no less than $100 per day since November 19, 2025 and continuing.
• Out-of-pocket compliance costs (transportation to treatment, program fees, polygraphs, GPS maintenance).
• Severe emotional distress, anxiety, humiliation, sleep disruption, hypervigilance, and reputational harm from being labeled "non-compliant" and "failed treatment" on a procedurally void and factually erroneous official document.
Total damages already exceed $25,000 and continue to accrue daily. Full amount (economic, non-economic, and punitive against individuals) will be proven at trial. See attached Complaint for Damages and government tort claim for details.

ONLINE GOVERNMENT CLAIM FORM

Additional Claim Information

CLAIM INFORMATION

Does the claim involve a state-owned vehicle?
No

Has a claim been filed with your insurance carrier?

- ○ *Yes*
- ◉ *No*

ONLINE GOVERNMENT CLAIM FORM

Attachments and Signature

If you have any documents you wish to attach to support your claim, please provide them here. We accept PDFs, Word, RTF documents, pictures, and videos. Individual attachments cannot exceed 25 MB.
Please see "Attachments" sub forms

☑ *By submitting this online form, I declare under penalty of perjury under the laws of the State of California that all the information I have provided is true and correct to the best of my information and belief. I further understand that if I have provided information that is false, intentionally incomplete, or misleading I may be charged with a felony punishable by up to four years in state prison and/or a fine of up to $10,000 (Penal Code section 72).*

☑ *By typing my name below, I understand and agree that this form of electronic signature has the same legal force and effect as a manual signature.*

Print your name here
Brendan Ngehsi Newanforbi

Declaration Date
2026-04-23

A $25 filing fee is required. After you submit your form, you will receive a link to pay the fee. If you do not pay the fee, your claim will not be processed.

ONLINE GOVERNMENT CLAIM FORM

Attachments (sub form from If you have any documents you wish to attach to support your claim, please provide them here. We accept PDFs, Word, RTF documents, pictures, and videos. Individual attachments cannot exceed 25 MB.)

Attachment
Discharge_Review_Report.pdf

After uploading an attachment, please select Save & Return at the bottom of the screen.
After saving and returning, you can choose to upload an additional attachment, if necessary.

Receipt

Government Claims Online Filing Fee

Payment Receipt

PRINT

Merchant:	State of California Government Claims Program
Merchant City/State:	West Sacramento, California
Merchant Location Code:	00001
Payment Status:	Success
Payment Date:	04/23/2026
Posting Date:	04/23/2026
Confirmation Number:	26042324436661
Billing Address:	Brendan Newanforbi 1455 Cat Tail Drive Stockton, CA 95204
E-Mail Address:	bnn.cdl@gmail.com
Total Amount:	25.00 USD
Convenience Fee	0.75 USD
Card Type:	MC
Account #:	x2398
Authorization Code:	2G6T48
Reference:	Brendan Ngehsi Newanforbi

Privacy-notice | Fiserv
File a Government Claim

All trademarks, service marks and trade names used in this material are the property of their respective owners.

Powered by PayPoint®
PayPoint Privacy Policy